

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant), represented by NOYB (European Centre for Digital Rights, Goldschlagstraße 172/4/3/2, 1140 Vienna, ZVR: 1354838270), filed a complaint with the Spanish Agency for Data Protection on August 20, 2020. The complaint is directed against VACACIONES EDREAMS, S.L. (hereinafter, EDREAMS) with NIF B61965778 (hereinafter, EDREAMS). The grounds for the complaint are as follows:

On 14/08/2020 at 4:44:00 AM, the complainant visited the website ***URL.1 while connected to the Google account associated with the address ***EMAIL.1 belonging to the complainant. The complainant had logged into their Google account associated with their email inbox. Through HTML code embedded in the webpage "www.edreams.es," personal data (at least, the IP address and "cookies") of the complainant were collected and transferred to Google LLC, 1600 Amphitheatre Parkway, Mountain View, CA 94043, USA, through the Google Analytics and Google Ads services contracted by the portal operator, EDREAMS.

The complainant argues that the transfer of personal data to the USA by the operator through its data processor lacks legal basis, as the CJEU has invalidated the decision on the "EU-US Privacy Shield" in ruling C-311/18 ("Schrems II"), and the operator can no longer base the transfer of data to Google in the USA on an adequacy decision under Article 45 of the GDPR.

It also asserts that the operator cannot base the transfer of data on the standard contractual clauses provided for in Articles 46.2.c and 46.2.d of the GDPR if the third country of destination does not guarantee an adequate level of protection for the personal data transferred under those clauses, according to EU law.

Furthermore, it indicates that the CJEU has explicitly ruled that subsequent transfers to companies covered by Article 50 of the United States Code (USC), such as Google, violate the relevant provisions of Chapter 5 of the GDPR, since, under this regulation (50 USC Par. 1881, or "FISA 702"), they are subject to US intelligence surveillance. The complainant understands that, as evidenced by the "Snowden Slides" and Google's own Transparency Report, this entity is actively providing personal data to the US government under that provision.

The complainant asserts that the operator and Google have continued to rely on the "EU-US Privacy Shield" and the standard data protection clauses for the aforementioned data transfers.

And requests that the complaint be fully investigated and that it be established:

1. What personal data was transferred from the operator to Google LLC in the USA or to any other third country and international organization.
2. On what transfer mechanism under Article 44 and subsequent articles of the GDPR the operator based this data transfer.
3. Whether the provisions of the Google Analytics Terms of Service and the new Data Processing Terms for Google Ads in their current version and effective from 31/08/2020 comply with the requirements of Article 28 GDPR regarding the transfer of personal data to third countries.
4. That an immediate prohibition or suspension of any data flow to Google LLC in the USA be imposed and that the return of such data to the EU/EEA or to another country that offers adequate protection under Articles 58(2)(d), (f), and (j) GDPR be ordered.
5. That an administrative fine be imposed against the Operator and Google.

Along with the complaint, a file with the extension .HAR is submitted, which includes, among other information:

1. A GET request to the URL ***URL.2, which includes cookies and fields of the request with, among others, the following values:

Field

Value

User-Agent

(...)

_ga

(...)

__gads

(...)

_gid

(...)

2. A GET request to the URL ***URL.3 where cookies and fields of the request are included with, among others, the following values:

Field

Value

User-Agent

(...)

NID

(...)

accept-language

(...)

u1

(...)

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

3/92

3. A POST request to the URL ***URL.4 with the following header and parameters encoded in the payload, among others:

Header

(...)

Field

Value

User-Agent

(...)

gjid

(...)

cid

(...)

tid

(...)

_gid

(...)

accept-language

(...)

SECOND: On 05/10/2020, in accordance with Article 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), the complaint submitted by the claimant was admitted for processing.

THIRD: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

1) On December 10, 2020, EDREAMS sent, in response to the request from this Agency, the following information and statements:

- Regarding general issues, it states:

1. That the company introduced the code of the tool on its website www.edreams.es (hereinafter the website).
2. That they are currently still embedding the tool in their code.
3. That the decision to incorporate the tool on their website was a corporate decision for all of their websites at the European level with the aim of measuring and improving the performance of their website and detecting possible issues and improvements.
4. That they chose Google Analytics for its ease of implementation and features compared to the competition. That there are not many alternatives to choose from.
5. That the statistics were collected from interested parties in the Member States where they concentrate their activity; Germany, Austria, Czech Republic, Denmark, Spain, France, Finland, Greece, Hungary, Italy, Netherlands, Poland, Portugal, Romania, Sweden.
6. That the data from the tool is accessed mainly from the offices in Spain led by the head of the Analytics team, but also from France and Germany by the management team of each country.
7. That, due to the tool, data is only communicated to GOOGLE; to no one else. That in the event that the user provides their consent for advertising cookies and does not block cookies in their browser, the tools Google Ad Manager and Google Ads will also be recipients. In any case, data is only communicated to GOOGLE.

- Regarding the legitimacy for the use of the tool, it states:

8. "The legal basis for the incorporation of the Tool is the dual legitimate interest of understanding how our website is used and providing a better service to users in accordance with Article 6.1.f of the General Data Protection Regulation (GDPR), in interpretation of Article 22.2, last paragraph, of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSICE). Art. 22.2, last paragraph, LSSICE:

'The above shall not prevent the possible storage or technical access solely for the purpose of carrying out the transmission of a communication over an electronic communications network or, to the extent that it is strictly necessary for the provision of a service of the information society expressly requested by the recipient.'

This has been interpreted by the French Data Protection Agency (the CNIL), under certain parameters to which eDreams has adhered, which can be consulted in the copy of their document attached as Annex 1.

The reference to the CNIL's decision regarding the legal argument that supports this party is relevant since not only does the French regulation, like the Spanish one, stem from European regulation, but the interpretation that the CNIL makes of its Article 82, last paragraph, of the French Data Protection Law (...) is completely applicable since that French article has the same content as Article 22, last paragraph, LSSICE:

Translated version in Spanish of Art. 82, last paragraph, of the French Data Protection Law:

'These provisions do not apply if access to the information stored on the user's terminal equipment or the recording of information on the user's terminal equipment:

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

5/92

1. Or, with the sole purpose of enabling or facilitating electronic communication;
2. Or, it is strictly necessary for the provision of an online communication service at the express request of the user."

Therefore, we consider the conclusions of the CNIL applicable. In its article "Cookies: solutions for audience measurement tools," the CNIL confirms the following in the section titled "Benefit from the consent exemption" (Annex I):

"The management of a website or an application almost systematically requires the use of traffic and/or performance statistics. Some audience measurement trackers may be exempt from consent. The condition for being able to use audience measurement trackers without consent is to ensure that they are strictly necessary for the provision of an online communication service at the express request

of the user, in accordance with Article 82 of the French Data Protection Act.

In order to limit itself to what is strictly necessary for the provision of the service, the CNIL emphasizes that these trackers must:

- Have a purpose strictly limited to the exclusive measurement of the audience of the site or application (performance measurement, detection of navigation problems, optimization of technical performance or ergonomics, estimation of the power of the necessary servers, analysis of the consulted content), solely on behalf of the publisher;
- Not allow global monitoring of the navigation of the person using different applications or browsing different websites;
- Serve solely to produce anonymous statistical data;
- Not lead to a matching of the data with other processing operations nor to the transmission of the data to third parties.

The CNIL also recommends the following:

- Users of the application will be informed about these trackers, for example, through the privacy policy of the site or mobile application;
- The lifespan of the trackers should be limited to a period that allows for a relevant comparison of audiences over time, as is the case with a period of thirteen months, and should not be automatically extended for new visits;
- The information collected through these trackers should be retained for a maximum period of 25 months;
- The mentioned lifespan and retention periods should be reviewed periodically to limit them to the strictly necessary minimum."

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

6/92

Furthermore, the CNIL establishes the case in which the service of the Google Analytics Tool could be: "(...) it is possible for a subcontractor to provide a comparative audience measurement service to multiple publishers, as long as the data is collected, processed, and stored independently for each publisher and that the trackers are independent of each other."

"Some audience measurement offers do not fall within the scope of the exemption, particularly when their providers indicate that they reuse the data on their own behalf. This is particularly the case for several large audience measurement offers available on the market. In some cases, it may be possible to configure these tools to disable data reuse; check with your tool provider that they contractually commit not to reuse the collected data."

eDreams meets the conditions established by the CNIL in the terms described in this document (with special reference to our responses to questions 6 to 9).

Finally, regarding the international transfer of data, the initial legal basis for it relied on the Privacy Shield Certificate until its invalidation and the standard data protection clauses adopted by the Commission ("Standard Contractual Clauses," or "SCC"), since August 2020, along with the appropriate supplementary measures provided by Google (this point will be developed further below).

- Regarding the use of the tool, as well as its configuration, it states:

9. That it did not have the option to transfer or not transfer data outside the EEA. That the configuration of the tool does not allow it.

10. It states that "We process the browsing and behavior data of customers on our websites that are pseudonymized through a cookie identifier 'Cookie ID' that allows us to analyze how the user accesses and interacts with our website through their device and our internal identifier to analyze the results at a statistical level in the terms below.

The 'Booking ID' (internal booking identifier) is used to identify the sales conversion rate. As well as the 'Checked Booking ID' which allows us to know how many people have entered the 'Manage my booking' section and have selected to cancel or modify it.

The 'Session, Session or eDOuser ID' allows us to limit the amount of data we have in Google Analytics to the maximum and we use it to resolve technical issues. If we detect that something is not working well on our website, we need to understand why and where the error is occurring to resolve it (determine which searches have failed, through which browser or device the search was made, at what moment the error occurred, etc.).

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

7/92

For all these reasons, the data is limited to how our users, through their devices, interact with our website (internal browsing data on the website).

In no case are special categories of data defined in Article 9.1 of the GDPR processed, nor can it be said that data of particularly vulnerable persons is processed. Non-pseudonymized data is also not processed (no personal data such as names, surnames, etc. is sent).

11.

"The recipient (that is, Google) may automatically become aware of the personal data of users, as the information is stored on its own platform. The code of the Tool is integrated directly when the user accesses our website. This applies strictly for the purpose of analyzing the use of our website. Any purpose that deviates from this, such as advertising, will not be activated until prior consent from the user is obtained. That is, in the event that the user does not provide consent, Google Analytics will not connect with Google Ad Manager and Google Ads in any way."

12.

That the data is stored for a period of 26 months, which is the period that allows them to make comparisons versus the previous year. This period has been defined taking into account recommendations from European data protection agencies regarding the processing of analytics data (among others, the CNIL, in its document of October 1, 2020: "Cookies: solutions for audience measurement tools").

13.

That the data is stored according to clause 10.3 of the document "Conditions for the processing of Google Ads data." That these terms or configurations do not allow for changes on their part.

14.

Regarding the configuration of the tool and what services are used, they state that:

a. Of the five purposes for sharing data with GOOGLE, they exclusively have activated the technical service of GOOGLE so that they can resolve any incidents, without GOOGLE being able to use it for other purposes.

b. Retention period of 26 months

c. The cookies are not refreshed even if the user revisits the website, so the duration of 13 months is static.

d. That apart from the tool's own service, they connect the data with other services when prior consent is obtained with:

"Google Ads Linking: This service links our Google Ads account to Analytics, allowing us to see the complete customer cycle, from how users interact with our marketing (for example, viewing ad impressions, clicking on ads) to how we ultimately achieve the goals we have set on our site (for example, making purchases, consuming content).

AdSense Linking: This service allows us to see our AdSense data in Analytics, as well as key Analytics metrics (users, bounce rate, new visitor, returning visitor, % of page visits, and traffic channels) on the AdSense homepage cards.

Google Ad Manager Linking: Once our Ad Manager and Analytics accounts are linked, Ad Manager metrics such as impressions, clicks, and revenue will be available in Analytics. An editor reporting section allows us to analyze these metrics in the context of our pages.

Optimize and Tag Manager linking: Google Optimize allows us to test and customize our website using Google Analytics data for measurement and targeting.

Ad Exchange Linking: This service allows receiving data from the Ad Exchange within your Analytics account regarding advertising statistical data.

Campaign Manager 360 Linking: This service enables the importation to Analytics 360 of statistical data from Campaign Manager 360 campaigns (impressions and clicks) and cost data.”

They provide a screenshot of the services linked to the tool where it states (unofficial translation, in English in the original):

- a. “AdSense. Actively linked. Receiving information. AdSense helps you earn money by displaying ads on your website that are relevant to your audience. [...]”
- b. “Google Ads. Actively linked. Sending and receiving information. Google Ads is an online advertising program that helps you reach your customers and grow your business, improves your ad campaigns, and analyzes the complete customer journey—from clicking on the ad to conversion.”
- c. “Ad Exchange. Actively linked. Receiving information. Ad Exchange helps you earn money by displaying ads on your website that are relevant to your audience. It correlates key AdExchange metrics, such as eCPM and unit impressions, with more Analytics data.”
- d. “Campaign Manager 360. Actively linked. Receiving information. Campaign Manager 360 is an ad management and publishing solution that helps agencies and advertisers manage the total reach of digital advertising programs. This integration allows Google Analytics 360 clients to view and analyze Campaign Manager 360 data in Analytics.”
- e. “Google Optimize and Tag Manager for website and app optimization. Actively linked. Receiving information. Google Optimize allows you to test and customize your website using Google Analytics to measure and personalize. [...]”

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

9/92

- f. “Search Console. Actively linked. Receiving information. Search Console can help you understand how users find your website through Google searches, identify ways to attract more attention to your website, and prioritize development efforts.”

Provides a screenshot showing the account settings in the “Data Sharing Settings” section where it states:

- a. “Google product & services.” Not selected.
- b. “Benchmarking.” Not selected.
- c. “Technical Support.” Selected.
- d. “Account specialists.” Not selected.
- e. “Give all Google sales experts access to your data and account so you can get more in-depth analysis, insights, and recommendations across Google products.” Not selected.

It states a retention period of 26 months, with the minimum selectable period being 14 months and the maximum 50 months. It also states the selectable option of not automatically deleting after a specific period, but this is not selected.

-

In relation to its relationship with GOOGLE, it states:

15.

That GOOGLE IRELAND LTD. acts as the data processor, in accordance with the Data Processing Agreement.

Provides link ***URL.5 to the adhesion contract proposed by GOOGLE “Conditions for the processing of Google Ads data,” in which it states:

“[...]

2.5 In the event that these Data Processing Conditions are translated into any other language and there is any discrepancy between the English version and the translated text, the English version shall apply.

[...]”

-

In relation to international transfers, it states:

16.

That “[...] it is important to mention that case C-311/18 refers to a litigation between Facebook and one of its users based in the European Union, in which the facts, the personal data processed, the terms and conditions, the legal basis, and the parties related to this case differ from the use that eDreams makes of the Tool.”

17.

That from the same day the CJEU ruling C-311/18 was published, it was considered that they should update their contracting by eliminating the legal basis of the Privacy Shield and including the Standard Contractual Clauses, that they should analyze the risks for the data subjects taking into account the type of personal data processed, and that they should review the additional measures already contained in the Standard Contractual Clauses.

a.

That regarding the Privacy Shield, GOOGLE proposed a new version with changes in the “Conditions for the processing of Google Ads data” within a month (August 16, 2020).

b.

That regarding the risks, they eliminated the transfer of the IP.

c.

That regarding the additional measures, in an email sent between EDREAMS and GOOGLE on September 24, GOOGLE stated that it had implemented the following additional safeguards to ensure the protection of Google Analytics data:

i.

Google Analytics ensures the secure transmission of its Javascript libraries and measurement data through the HTTP Strict Transport Security (HSTS) protocol.

<https://support.google.com/analytics/answer/6385009>

ii.

IP anonymization. GOOGLE offered the option to anonymize IPs. If this option is activated, IPs are deleted immediately after collection and are never stored on disk. This measure was implemented from eDreams. https://support.google.com/analytics/answer/2763052?hl=en&ref=_topic=2919631

iii.

Google has obtained ISO 27001 certification in relation to Google Analytics.

iv.

According to GOOGLE, they have a team that carefully reviews each user data request they receive from government authorities. Transparency report at ***URL.6 and their policies at ***URL.7.

v.

Encryption to protect personal data against interception in transit.

18.

EDREAMS states:

“[...] it cannot be interpreted that every transfer to the United States is invalid, but rather that a proper case-by-case comparative analysis is required, taking into account the likelihood of impact and the possible harm to individuals regarding their personal data and other rights and freedoms.

Firstly, the judicial case referred to in the CJEU ruling C-311/18 concerns the use of the Facebook social network by European residents. The characteristics of that case do not resemble the use we make of Google Analytics (which we describe in this document, in response to your questions), for several reasons.

In a social network like Facebook, the characteristics of a social network undeniably and severely affect the privacy of the data subjects.

These characteristics include, among others, the expansive nature of personal data (including sensitive data such as health, political preferences, religious beliefs, or philosophical positions, etc.), the possibility that Facebook has a reasonable number of vulnerable individuals (especially minors, but not only), and the enormous amount of personal data shared on that platform.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

11/92

platform, with a complex application of the data minimization principle (which can represent a person's life), even with the risk of sharing data (such as photographs) of individuals who are not part of that social network and the direct identification of the interested parties, etc.

Therefore, and due to the use we make of the Tool referred to in this document, this party understands that the conclusions of the judicial ruling cannot be directly applicable to the use of the Tool by eDreams. Despite the essential characteristics of the Tool's use having been mentioned in other responses, it is appropriate to emphasize some of them that distance both cases from a potentially valid analogous analysis:

eDreams uses the Tool through pseudonymized data, which cannot be directly attributed to a natural person,

eDreams has applied an appropriate retention period for the described purpose of conducting annual analyses regarding the previous year, to understand trends, and a minimization of the data confined to the use of our website by the user, etc.

From the data collected in the Tool, it can only be deduced that certain identifiers have used our website and how they have used it, which has no impact within the competencies of U.S. agencies, in the terms described in our response to question 23.

Furthermore, regarding the use of cookies, every user has the option to block cookies in their browsers, and this solution is pertinent, which, although not the only one, is a practical and easily available solution.

[...]

19.

That the legal basis for the international transfer of data is based on the Privacy Shield until its annulment and the standard contractual clauses adopted by the Commission since August 2020, along with the appropriate supplementary measures provided by GOOGLE.

20.

That the standard contractual clauses are located at ***URL.8.

21.

That EDREAMS currently considers the supplementary measures to the Standard Contractual Clauses provided by GOOGLE to be sufficient.

22.

And that "Therefore, this party has not considered making an adaptation of the information provided in accordance with Article 13, paragraph 1, letter f), of the GDPR, or, where applicable, in accordance with Article 14, paragraph 1, letter f), of the GDPR, since the information provided so far remains in effect as stated in our Privacy Policy, in subsection "III. International Data Transfers", section "7. How do we protect your data?".

23.

That in response to whether they have verified that there is nothing in the legislation of the third country that prohibits the recipients from fulfilling their contractual obligations established in the standard contractual clauses (SCCs) in order to ensure that the level of data protection of natural persons guaranteed in the EEA is not undermined, they state that:

"In coordination with Google, we have conducted the analysis in the terms described here.

Taking into account the technical and organizational supplementary measures to the Standard Contractual Clauses (such as pseudonymization), as well as the nature of the data (to which we refer in this document, especially in the responses to questions 7, 17, and 23), we confirm that there is nothing in the legislation of the third country that prohibits the recipients from fulfilling their contractual obligations established in the Standard Contractual Clauses in order to ensure that the level of data protection of natural persons guaranteed in the EEA is not undermined.

As mentioned, we requested Google's position on this matter since, when interpreting U.S. regulations, it made sense to rely on a U.S. multinational rather than making a firm assessment on our part, as we are a European company, regarding foreign regulations. Based on the information provided by Google, as well as the reading of the U.S. regulations referred to in the CJEU ruling mentioned in this document, we respond affirmatively to this question.

In the coming weeks and months, eDreams will continue to closely follow the future Guidelines of the European Data Protection Board and the new Standard Contractual Clauses from the European Commission. Google has confirmed to us that they will work in the same direction. If necessary, we will assess the need to implement new additional measures to those already discussed in our responses to questions 17 and 23.”

24.

That in response to the reasons why they concluded that the recipients can guarantee compliance with the contractual obligations of the SCCs, they state that:

a.

The type of personal data collected in the tool strictly pertains to the use of their website.

b.

That they are not directly identifiable, that they are pseudonymized with the referred internal identifiers.

c.

That there is no risk to the privacy of users of their website that would lead to the adoption of more radical measures than the aforementioned supplementary measures.

d.

“In the event that any U.S. security agency wishes to gain access to the data collected by eDreams in the Tool, first of all, they could not do so directly, without sending a request to Google, as such data is encrypted. Furthermore, Google has internal processes to challenge any request from the U.S. administration that it considers disproportionate or incompatible with European data protection regulations or with the Clauses.”

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

13/92

Type Contracts and this party considers that it would be incomprehensible that a request for access to data from the Tool would be relevant or appropriate under U.S. law.

[...]

Furthermore, in the hypothetical case that the corresponding U.S. agency were to access the data, it would not be able to know which person is behind the data collected in the Tool through our identifiers, as only personal data that would allow for direct identification is protected by eDreams and stored within the European Economic Area.

25.

Regarding U.S. legislation, GOOGLE has provided the following information:

“EO 123331 (...) organizes and assigns functions and responsibilities to the U.S. intelligence community and articulates high-level principles that all intelligence activities must comply with. The specific intelligence activities conducted under EO NO 12333 are subject to more specific (which may be classified) enforcement procedures that include appropriate safeguards and protections for that type of intelligence activity. EO 12333 primarily governs intelligence activities conducted outside the United States. It is understood that EO 12333 allows the United States to conduct electronic surveillance outside the United States in accordance with U.S. legal requirements; it does not

authorize electronic surveillance within the United States nor impose requirements on service providers inside or outside the United States.

Section 702 of the FISA Amendments Act, which also requires the U.S. Government to minimize the use and dissemination of data, has two components:

Section 702 "Upstream" authorizes U.S. authorities to collect data traveling through the "backbone" infrastructure of the Internet controlled by U.S. electronic communication service providers (for example, U.S. telecommunications providers). To the extent that any user or customer data traverses networks subject to collection under Section 702 Upstream, that data is encrypted in transit as described above.

Section 702 "Downstream" authorizes U.S. authorities to obtain specific data directly from electronic communication service providers. To the extent that Google LLC may be subject to specific requests related to Google customer data under Section 702 Downstream, we carefully review each request we receive under FISA regulations in accordance with the guidelines described below to ensure that it meets all applicable legal requirements and Google policies."

1 Executive Order 12333 of the United States (hereinafter, EO 12333 or EO 123333)

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

14/92

26.

In relation to the application of complementary measures, GOOGLE has communicated the following:

"In relation to technical and organizational measures, Google states that if any government requests access to personal data stored in Google's systems during an investigation, a dedicated team of Google lawyers and specially trained personnel will carefully review the request to verify that it is legal, appropriate, and complies with Google's policies.

For more information on how Google manages government data requests, Google provides access to the Transparency Report, and for a more detailed explanation of its policies and procedures, they can be accessed here.

Google has also published frequently asked questions regarding national security requests from the United States.

Regarding technical measures, Google states that:

"The infrastructure of Google is not designed to, and does not give the United States government or any other government 'backdoor' access to customer data or to their servers that store customer data. Furthermore, Google employs strong technical measures (such as encryption, which is described below) to protect against interception in transit, including attempts at surveillance by government authorities around the world.

Encryption is a process that takes readable data as input (often referred to as plaintext) and transforms it into an output (often called ciphertext) that prevents the reading of the plaintext. If the data is encrypted, it will be unreadable to a third party without the encryption key, and it cannot be meaningfully accessed by a government agency in the United States or another country unless it goes through formal access channels to obtain the unencrypted text. Encryption is, therefore, an effective means to prevent any 'covert' or unauthorized access to customer data.

Google employs strong technical measures to safeguard personal data and to protect it against interception during transit. Google Analytics by default uses the HTTP Strict Transport Security (HSTS) protocol, which instructs browsers that support HTTP over SSL (HTTPS) to use that encryption protocol for all communications between end users, websites, and Google Analytics servers. This encryption prevents intruders from passively listening to communications between websites and users. More information about Google's use of HTTPS is available.

Google protects service-to-service communications at the application layer through a mutual authentication and transport encryption system developed by Google called Application Layer Transport Security (ALTS). The concept of ALTS is similar to that of mutual authentication TLS, but it

has been designed and optimized to meet the needs of Google's data center environments. ALTS authenticates communication between Google services and helps

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

15/92

to protect data in transit. AL TS is a highly reliable and trusted system that provides authentication and security for Google's Remote Procedure Call (RPC) communications. AL TS requires minimal participation from Google's own services. When Google services communicate with each other, they do not need to explicitly configure anything to ensure the protection of data transmission; this is the protection of user data by design and by default.

AL TS ensures that the integrity of Google traffic is protected and encrypted as necessary. After a handshake protocol between the client and the server is completed and the client and server negotiate the necessary shared cryptographic secrets to encrypt and authenticate network traffic, AL TS secures RPC (Remote Procedure Call) traffic by enforcing integrity and optional encryption using the negotiated shared secrets. Google supports multiple protocols to ensure integrity, for example, AES-GMAC (Advanced Encryption Standard) with 128-bit keys. Whenever traffic leaves a physical boundary controlled by or on behalf of Google, for example, in transit over a WAN (Wide Area Network) between data centers, all protocols are automatically updated to provide encryption as well as integrity guarantees.

HTTPS encryption helps keep users' browsing secure by securely connecting their browser or application with the websites they visit. HTTPS relies on encryption technology -SSL or TLS- to secure these connections. This encryption prevents intruders from passively eavesdropping on communications between websites and users. Since 2008, Google has been working to ensure that Google services use strong HTTPS encryption by default. In 2015, Google announced a set of initiatives to extend this "HTTPS Everywhere" mission to its advertising products, to support its advertising clients and partners. Google has been publishing a report that provides data on the state of HTTPS adoption and usage in Google and across the web, including for its advertising products, as well as additional information on Google's use of encryption. ...

Google encrypts Google Analytics data stored at rest in its data centers using the Advanced Encryption Standard. Each data center is protected with six layers of physical security designed to prevent unauthorized access. For more information:

The "at rest" encryption in this section refers to the encryption used to protect user data stored on a disk (including solid-state drives) or on backup media. All user data is encrypted at the storage level, generally using the Advanced Encryption Standard (AES256). Data is typically encrypted at multiple levels in Google's production storage stack in data centers, even at the hardware level, without requiring any action from Google's clients. The use of multiple layers of encryption adds redundant data protection and allows Google to select the optimal approach based on application requirements.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

16/92

Google uses common cryptographic libraries that incorporate Google's validated FIPS 140-2 module to implement encryption consistently across all products. The consistent use of common libraries means that only a small team of cryptographers needs to implement and maintain this tightly controlled and reviewed code.

Google provides publicly available information about our data protection and security measures here. Google builds dedicated servers for its data centers and maintains a leading security team to ensure that Google's data centers are among the most secure in the world. Google's production data centers are protected by multiple layers of security to prevent any unauthorized access to data (...).

We limit access to Google's advertising and analytics personal data to Google personnel who need it to perform their jobs: (...).

Customers using Google Analytics can enable IP anonymization to instruct Google to anonymize all IP addresses immediately after they are collected. If enabled, the full IP address is never written to disk, as all anonymization occurs in memory almost instantaneously after receiving the request. More details about IP anonymization can be found here.

To the extent that the Google Analytics data for measurement transferred by customers are personal data, they would need to be considered as pseudonymous.

The Google Analytics terms of service require that no data be transferred to Google that Google could use or recognize as personally identifiable information (PII). More information about what Google considers PII.

The Schrems II decision has created uncertainty regarding the impact of U.S. legislation on data transfers and the role of Google LLC, a U.S. company, as a data importer under the SCCs introduced with customers of Google's advertising and measurement products.

The United States Executive Order 12333 (EO 12333) (...) allows the United States to conduct electronic surveillance outside the United States in accordance with U.S. legal requirements; it does not authorize electronic surveillance within the United States nor impose requirements on service providers inside or outside the United States.

Third-party certifications and compliance offerings. Google has obtained ISO 27001 certification, which provides independent accreditation of the systems, applications, people, technology, processes, and data centers serving various Google products. Google will allow customers or a third-party auditor designated by a customer to conduct audits (including inspections) to verify compliance with Google's obligations.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

17/92

27.

They state that "The implementation of these supplementary measures, along with eDreams' monitoring of Google's indications, as well as the nature of the data, the irrelevance of the data collected in the Tool in response to any request from any agency... leads us to conclude that we understand there is no risk to the privacy of our users."

2) Through due diligence conducted by this Agency on February 3, 2021, it is verified that in the link ***URL.9 in the privacy policy of EDREAMS it states:

"[...]

V. Marketing activities. We use your information for marketing purposes, among others:

[...]

II. Information we automatically collect when you use our services.

a. Information from your device (for example, your IP address, browser type, Internet service providers, geographic location, technical information about the device, the time and duration of the request and visit, and the method used to send your request to the server). When you visit our websites or our app, we automatically collect certain information from your device. Please note that we may associate this information with your account.

b. Other technical information, for example, how your device has interacted with our website or our app (for example, the pages you have accessed, the links you have clicked, etc.) or other means.

[...]

If you register on our website with a social network account, link the account you use on our website with your social network account, or use any other of our social media features, we may access information about you through that social network provider, in accordance with that provider's policies. The information may include your name, email address, profile picture, gender, friend list, and any other information you authorize us to receive.

Part of this information may be collected through cookies or similar tracking technology. The processing of information collected through cookies is based on different legal grounds (for example, it may be necessary to provide our services based on your consent). For more information, please see our Cookie Policy.

[...]

III. International data transfers. Our servers are located in the European Union. However, to facilitate our global operations (carried out by external service providers), the transmission of personal data to the previously described recipients may include international transfers.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

18/92

of personal data to countries whose data protection regulations are not as comprehensive as those of countries within the European Union. In these situations, as required, we enter into contractual agreements to ensure that your personal data remains protected in accordance with European standards.

[...]

3) On February 3, 2021, this Agency verified the content of the URL ***URL.10 where it states (unofficial translation, in English in the original):

“Terms of Data Processing of Google Ads: Standard Contractual Clauses (Processors)

For the transfer of personal data to processors established in third countries that do not ensure an adequate level of data protection

Name of the organization exporting the data: the entity identified as the “Client” in the Terms of Data Processing (the data exporter)

and

Name of the organization importing the data: Google LLC, 1600 Amphitheatre Parkway, Mountain View, California 94043 USA (the data importer)

[...]

Clause 4

Obligations of the data exporter

The data exporter agrees and warrants:

(a) that the processing, including the transfer itself, of personal data has been and will be carried out in accordance with the relevant provisions of applicable data protection legislation (and, where applicable, has been notified to the relevant authorities of the Member State where the data exporter is established) and does not violate the relevant provisions of that State;

(b) that it has instructed and during the duration of the data processing services will instruct the data importer to process the transferred personal data only on behalf of the data exporter and in accordance with applicable data protection legislation and the Clauses;

(c) that the data importer will provide sufficient guarantees regarding the technical and organizational security measures specified in Appendix 2 of this contract;

(d) that after analyzing the requirements of applicable data protection legislation, the security measures are adequate to protect personal data against accidental or unlawful destruction or accidental loss, alteration, unauthorized disclosure or access, particularly if the processing involves the transmission of data over a network, and against any other form of unlawful processing, and that these measures ensure a level of security appropriate to the risks presented by the processing and the nature of the data to be protected, taking into account the state of the art and the cost of their implementation;

[...]

Clause 5

Obligations of the data importer

The data importer agrees and warrants:

(a) to process the personal data only on behalf of the data exporter and in compliance with its

instructions and the Clauses; if it cannot comply for any reason, it agrees to duly inform the data exporter of its inability to comply, in which case the data exporter may suspend the transfer of the data and/or terminate the contract;

(b) that it has no reason to believe that applicable legislation prevents it from complying with the instructions received from the data exporter and its obligations under the contract and that in the event of a change in this legislation that is likely to have a substantial adverse effect on the guarantees and obligations established by the Clauses, it will immediately notify the data exporter of the change as soon as it becomes aware, in which case the data exporter may suspend the transfer of the data and/or terminate the contract;

(c) that it has implemented the technical and organizational security measures specified in Appendix 2 before processing the transferred personal data;

(d) that it will immediately notify the data exporter about:

(i) any legally binding request for disclosure of personal data by a law enforcement authority unless prohibited, such as a prohibition under [...]

[...]

Clause 8

Cooperation with supervisory authorities

1. The data exporter agrees to deposit a copy of this contract with the supervisory authority if such request or deposit is mandatory under applicable data protection legislation.

2. The parties agree that the supervisory authority has the right to conduct an audit of the data importer, and any sub-processor, that has the

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

20/92

the same scope and is subject to the same conditions that would apply to an audit of the data exporter under the applicable data protection legislation.

[...]

Appendix 2 to the Standard Contractual Clauses

This Appendix forms part of the Clauses.

Description of the technical and organizational security measures implemented by the data importer in accordance with Clauses 4(c) and 5(c) (or attached document/legislation):

The data importer currently complies with the Security Measures set forth in Appendix 2 of the Data Processing Terms at ***URL.11.

[...]

4) By diligence of this Agency dated February 3, 2021, the content of ***URL.12 is verified where it states:

"Conditions for the processing of Google Ads data

Google and the counterparty accepting these Conditions (the "Client") have entered into a contract for the provision of processing services (with its specific amendments, the "Contract")

These Conditions for the processing of Google Ads data (the "Data Processing Conditions") are subscribed by Google and the Client and complement the Contract.

[...]

Introduction

These Data Processing Conditions reflect the parties' agreement on the conditions governing the processing of certain personal data in relation to European data protection legislation and certain non-European data protection legislation.

Definitions and interpretation

[...]

"European or National Laws": as applicable: (a) the laws of the EU or its Member States (if the EU GDPR applies to the processing of the Client's Personal Data); and/or (b) the law of the United

Kingdom or a part of the United Kingdom (if the UK GDPR applies to the processing of the Client's Personal Data).

[...]

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

21/92

"Google": the Google Entity that is a party to the Contract.

"Sub-processors of Google's data processing affiliates" has the meaning given in Section 11.1 (Consent for engaging the data processor).

"Google Entity": Google LLC (formerly known as Google Inc.), Google Ireland Limited, or any other Affiliate of Google LLC.

[...]

5. Data Processing

5.1 Roles and compliance; authorization.

5.1.1 Responsibilities of the processor and the controller. The parties acknowledge and agree that:

- (a) Appendix 1 describes the purpose and details of the processing of the Client's Personal Data;
- (b) Google is a processor of the Client's Personal Data under European data protection legislation;
- (c) The Client is a controller or processor, as applicable, of the Client's Personal Data under European data protection legislation; and
- (d) each party will comply with its respective obligations under European data protection legislation regarding the processing of the Client's Personal Data.

[...]

5.2 Client instructions. By entering into these Data Processing Conditions, the Client instructs Google to process the Client's Personal Data only in accordance with applicable law: (a) to provide the processing services and any related technical support; (b) as further specified through the Client's use of the processing services (including the configuration and other functionalities of the processing services) and any related technical support; (c) as documented through the Contract, including these Data Processing Conditions; and (d) as documented in other instructions provided in writing by the Client and acknowledged by Google as constitutive instructions for the purposes of these Data Processing Conditions.

5.3 Compliance with instructions by Google. Google will comply with the instructions described in Section 5.2 (Client instructions) (including those related to data transfers), unless European or National Laws require otherwise.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

22/92

to which Google is subject requires another processing of personal data by Google, in which case Google will inform the Client (unless any of such laws prohibit Google from doing so for significant public interest reasons).

[...]

10. Data Transfers

10.1 Data Storage and Processing Facilities. The Client agrees that Google, without prejudice to Section 10.2 (Data Transfers), may store and process the Client's Personal Data in any country where Google or any of its Sub-processors maintain facilities.

10.2 Data Transfers. If the storage and/or processing of the Client's Personal Data involves transfers of the Client's Personal Data from the EEA, Switzerland, or the United Kingdom to any third country that is not subject to an adequacy decision under European data protection legislation:

- (a) It will be deemed that the Client (as the data exporter) has entered into the Standard Contractual Clauses with Google LLC (as the data importer);
- (b) the transfers will be subject to the Standard Contractual Clauses; and
- (c) Google will ensure that Google LLC complies with its obligations under such Standard Contractual Clauses with respect to such transfers.

[...]

11. Sub-processors

11.1 Consent for Engaging Sub-processors. The Client specifically authorizes the engagement of Google's affiliates as Sub-processors ("Google Affiliate Sub-processors"). Additionally, the Client generally authorizes the engagement of other third parties as Sub-processors ("Third-party Sub-processors"). If the Standard Contractual Clauses apply under Section 10.2 (Data Transfers), the above authorizations constitute the Client's prior written consent for Google LLC to subcontract the processing of the Client's Personal Data.

[...]

5) By diligence of this Agency dated February 3, 2021, the content of the URL ***URL.13 is verified where it states:

"[...]

Requests from U.S. government agencies in cases involving national security

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

23/92

In investigations related to national security, the U.S. government may use a National Security Letter (NSL) or one of the authorizations granted under the Foreign Intelligence Surveillance Act (FISA) to compel Google to provide user information.

An NSL does not require judicial authorization and may only be used to compel us to provide limited subscriber information.

FISA orders and authorizations can be used to compel electronic surveillance and the disclosure of stored data, including the content of services such as Gmail, Drive, and Photos."

[...]" (unofficial translation, in English in the original)

6) By diligence of this Agency dated February 3, 2021, the content of the URL ***URL.14 is verified where it states:

"[...]

Basics on personally identifiable information in Google contracts and policies.

In many contracts, terms of service, and policies of Google's advertising and measurement products, reference is made to "personally identifiable information" (PII).

This is a categorization of data different from what the General Data Protection Regulation (GDPR) considers "personal data."

Please note that, although Google may not identify certain data as personally identifiable information, the GDPR may do so, or such data may be considered personal information under the California Consumer Privacy Act (CCPA), and may be subject to those laws.

[...]

Google considers "personally identifiable information" to be information that can be used alone to identify or locate a person accurately, or to contact them directly. Among other data, it includes the following:

- Email addresses
- Postal addresses
- Phone numbers
- Precise locations (e.g., GPS coordinates, except in cases mentioned below)
- Full names (first and last name) or usernames.

[...]

Among others, Google does not consider the following data to be personally identifiable information:

- Pseudonymous cookie IDs
- Pseudonymous advertising IDs
- IP addresses
- Other pseudonymous end-user identifiers

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

24/92

For example, if an IP address is sent with an ad request (something that happens with almost all ad requests as a consequence of Internet protocols), that submission will not violate any prohibition related to sending personally identifiable information to Google.

Please note that, although Google does not identify certain data as personally identifiable information, the GDPR, the CCPA, or other privacy laws may consider them personal data or personal information. [...]

7) By diligence of this Agency dated February 1, 2021, it is verified that after visiting the website ***URL.15 while logged into a Google test account, the visit to said website is reflected within the section "Web and App Activity."

8) By diligence dated February 17, 2021, it is verified, after deleting cookies, that:

1. After logging into a Google account, cookies such as NID, LSID, SID, __Secure-3PSID, __Secure-3PAPISID are installed in the browser, all of them with more than 30 alphanumeric characters where uppercase and lowercase letters are allowed and an expiration period from 6 months to several years. Cookies such as _ga, _gid are not installed.

2. That while logged into the Google account and after visiting ***URL.15, rejecting all its cookies and performing a search for a rental car from Madrid-Airport to Malaga-Airport with a rental start date of 02/25/2021 and an end date of 02/28/2021, it is verified that cookies _ga, _gid among others are installed. It is also verified that there is an HTTP GET request to the domain google-analytics.com in which the parameters within the URL of the request include, among others, data such as:

a. the cookie _ga within the parameter cid and the cookie _gid.

b. the visited URL (***URL.16) and, among other data, the operation performed within it, encoded as:

"pickupDateTime": "2021-02-25"

"returnDateTime": "2021-02-28"

"pickupName": "%3DMadrid%2520-%2520Aeropuerto"

"returnName": "%3DM%25C3%25A1laga%2520-%2520Aeropuerto"

c. the parameter "sr."

3. That in the headers of the HTTP GET there are also data such as "user-agent" and

"accept-language."

9) By diligence dated March 4, 2021, it is verified that, after logging into a Google account, followed by a logout and then browsing www.edreams.es corresponding to a flight plus hotel search from March 19 to March 21, selecting Madrid as the origin and Malaga as the destination:

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

25/92

1. There is an HTTP POST request to the domain google-analytics.com where data is sent as payload, among others:

"www.edreams.es"

"sr=1920x1080"

the parameter "cid" which matches the value of the cookie _ga

the parameter _gid which matches the value of the cookie _gid

the departure and return dates, as well as the departure and arrival cities.

2. That in the headers of the HTTP POST there are also data such as “user-agent” and “accept-language.”

10) By diligence dated June 23, 2021, it is verified that, after logging into a Google account, browsing the website www.edreams.es follows:

1. There is an HTTP GET request to the domain adservice.google.com where the parameter `u1` is sent with the same value as that contained in the cookie `_ga` as well as the parameters “user-agent” and “accept-language.” In this same HTTP GET request, the cookie `NID` is also sent. It is verified, on different dates, that the domain google-analytics.com as well as several IP addresses corresponding to that domain are assigned to GOOGLE LLC.

11) On May 12, 2021, EDREAMS sent the following information and statements to this Agency:

1. That the total number of users in the period from April 1, 2020, to March 31, 2021, of its website `***URL.15` as well as other versions of its page aimed at other countries is, for example, in the German market 1,623,842 visits, in the Spanish market 13,344,019 visits, and in the French market 12,682,624 visits. The total number of users in the described period is 72,648,400 visits.

2. That the version they use is Google Analytics 360, since July 2012.

12) On May 28, 2021, EDREAMS sent the following information and statements to this Agency:

1. That the establishments in which they process personal data in the context of the complaint are Germany, Spain, France, Italy, United Kingdom.

2. That regarding human resources, (...).

FOURTH: On October 5, 2021, the Director of the AEPD declared the expiration of the proceedings as more than twelve months had passed since the date of admission of the complaint, and since the infringement had not prescribed, new investigative proceedings were opened with the number E/10531/2021, and the documentation in E/08699/2020 was incorporated into these new proceedings.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

26/92

FIFTH: The General Subdirectorate for Data Inspection continued with the preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

1) By means of a diligence carried out by this Agency on October 27, 2021, it is verified that in the plenary session of the European Data Protection Committee dated September 2, 2020, it was decided to create a working group to ensure a coherent approach among European data authorities to manage the 101 complaints from NOYB, which concern similar issues (the complainant visited a website of a data controller while logged into their Google or Facebook account linked to their email address. The data controller had embedded code from Google or Facebook services, which had transferred their personal data to the United States without having a legal basis for it).

2) By means of a diligence carried out by this Agency on October 27, 2021, a document dated April 9, 2021, sent by GOOGLE LLC to the Austrian data protection authority is incorporated, which shares it with the other authorities through the Working Group for the 101 complaints from NOYB in the context of the CJEU Schrems II ruling (“101 taskforce,” hereinafter, working group TF101), with the content stated in the FORTIETH PROVEN FACT.

3) By means of a diligence carried out by this Agency, dated November 2, 2021, it is verified that on the website `***URL.1` it is also available for the following EEA countries: Czech Republic, France, Italy, Romania, Germany, Greece, Netherlands, Poland, Hungary, Portugal.

4) By means of a diligence from this Agency dated November 2, 2021, it is verified that at the URL `***URL.17` there is the existence of FISA (Foreign Intelligence Surveillance Act) and NSL (National Security Letters) requests directed to GOOGLE regarding user information.

5) By means of diligences carried out by this Agency dated March 24, 2022, and March 25, 2022, it is verified that in the description of Google Analytics located at URLs `***URL.18` and `***URL.19`, among

other information, it states that the cookies _ga and _gid are used to distinguish users and that the parameter "sr" refers to screen resolution. It is also verified, through the execution of tracert commands to various IP addresses assigned to GOOGLE LLC in relation to the domain google-analytics.com, that the RTT times are too low for said destination IPs to be geographically located in the United States. SIXTH: On October 3, 2022, the Director of the AEPD adopted a draft decision to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, on October 18, 2022, this was transmitted through the IMI system.

C/ Jorge Juan 6
www.aepd.es
28001 - Madrid
sedeagpd.gob.es
27/92

draft decision and the interested authorities were informed that they had four weeks from that moment to submit relevant and justified objections. The processing period of this sanctioning procedure was automatically suspended during these four weeks, in accordance with the provisions of Article 64.4 of the then-current LOPDGDD.

Within the specified period, the interested control authorities did not submit relevant and justified objections in this regard, so it is considered that all authorities agree with the draft decision and are bound by it, in accordance with the provisions of paragraph 6 of Article 60 of the GDPR.

This draft decision was notified to EDREAMS in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP) on 04/10/2022, as evidenced by the acknowledgment of receipt in the file.

SEVENTH: On November 25, 2022, the Director of the Spanish Data Protection Agency agreed to initiate sanctioning proceedings against the respondent party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 44 of the GDPR, classified under Article 83.5 of the GDPR.

EIGHTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the respondent party submitted a written statement of allegations which has been incorporated into the file.

NINTH: On November 29, 2022, EDREAMS submitted a written request for an extension of the deadline to submit allegations and for a copy of the file. On December 9, 2022, an agreement was issued granting EDREAMS an extension of five business days to submit allegations, and a copy of the file was prepared, which, due to the size of the document, could not be sent electronically as is customary in this Agency. Due to this technical impossibility, it was decided to send the copy of the file in electronic format via courier, for which the staff of this Agency responsible for such functions confirmed the address by phone with EDREAMS personnel, who, at that time, was listed in this Agency's database, to which the shipment was sent on December 12, 2022.

Despite the aforementioned verification, as evidenced by the receipt issued by the courier company in the file, on December 13, 2022, when there were still 6 business days remaining for the deadline to submit allegations, the courier was unable to deliver the shipment for the following reason: "Recipient unknown at the delivery address." After this first delivery attempt, contact was made again with EDREAMS to confirm the address. Therefore, the delay in the delivery of the copy of the file is due to EDREAMS not having notified this Agency of the change of address.

C/ Jorge Juan 6
www.aepd.es
28001 - Madrid
sedeagpd.gob.es

28/92

On December 15, 2022, when there were four business days left until the last day for submitting allegations, staff from this Agency provided the copy of the file in person to a citizen acting on behalf of

EDREAMS, to whom the copy could not be provided two days earlier when they appeared before this Agency without proving such representation.

TENTH: On June 28, 2023, the instructing body of the procedure issued a resolution proposal in which it is proposed that EDREAMS be ordered to adapt its data processing activities to the GDPR, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the infringement of Article 44 of the GDPR, classified under Article 83.5 of the GDPR, in which it was indicated that they had a period of ten days to submit allegations.

This resolution proposal, which was notified to EDREAMS in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was received on June 28, 2023, as evidenced by the acknowledgment of receipt in the file.

ELEVENTH: On July 14, 2023, a written statement from EDREAMS was received by this Agency, in due time and form, in which they presented allegations to the resolution proposal.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: A.A.A. (the complainant) on 14/08/2020 at 4:44:00 AM, visited the website ***URL.1 while connected to the Google account associated with the address ***EMAIL.1 belonging to the complainant.

Through HTML code embedded in the website "www.edreams.es", personal data (at least, the IP address and "cookies") of the complainant have been collected and transferred to Google LLC, 1600 Amphitheatre Parkway, Mountain View, CA 94043, USA, through the Google Analytics and Google Ads services contracted by the portal manager, EDREAMS.

When the complainant visited the aforementioned website, the following requests were made:

1. A GET request to the URL ***URL.2, which includes cookies and fields in the request with, among others, the following values:

Field

Value

User-Agent

(...)

_ga

(...)

__gads

(...)

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

29/92

_gid

(...)

2.

A GET request to the URL ***URL.3 where cookies and fields of the request are included with, among others, the following values:

Field

Value

User-Agent

(...)

NID

(...)

accept-language

(...)

u1

(...)

3.

A POST request to the URL ***URL.20 with the following header and parameters encoded in the payload, among others:

Header

(...)

(...)

Field

Value

User-Agent

(...)

gjid

(...)

cid

(...)

tid

(...)

_gid

(...)

accept-language

(...)

SECOND: According to your response dated 10/12/2020, in response to a request from this Agency, EDREAMS has introduced the code for the Google Analytics tool on its website ***URL.15 and is currently still embedding it.

THIRD: According to your response dated 10/12/2020, in response to a request from this Agency, the statistics from Google Analytics were collected from interested parties in the Member States where EDREAMS concentrates its activity; Germany, Austria, Czech Republic, Denmark, Spain, France, Finland, Greece, Hungary, Italy, Netherlands, Poland, Portugal, Romania, Sweden.

FOURTH: According to your response dated 10/12/2020, in response to a request from this Agency, the data from the Google Analytics tool is accessed mainly from the EDREAMS offices in Spain led by the person responsible for the Analytics team, but also from France and Germany by the management team of each country.

FIFTH: According to your response dated 10/12/2020, in response to a request from this Agency, EDREAMS only communicates the data collected through Google Analytics to GOOGLE. And in the event that the user provides their consent for advertising cookies and does not block cookies in their browser, the Google Ad Manager and Google Ads tools will also be recipients.

SIXTH: According to your response dated 10/12/2020, in response to a request from this Agency, the legal basis for the incorporation of the Tool is the dual legitimate interest of understanding how the EDREAMS website is used and providing a better service to users.

SEVENTH: According to your response dated 10/12/2020, in response to a request from this Agency, the initial legal basis for the international transfer of data by EDREAMS was based on the Privacy Shield Certificate until its invalidation and the standard data protection clauses adopted by the Commission ("Standard Contractual Clauses," or "SCC"), since August 2020, along with the appropriate supplementary measures provided by Google.

EIGHTH: According to your response dated 10/12/2020, in response to a request from this Agency, EDREAMS did not have the option to transfer or not transfer data outside the EEA when using Google Analytics, as the configuration of the tool does not allow it.

NINTH: According to your response dated 10/12/2020, in response to a request from this Agency, EDREAMS processes the browsing and behavior data of customers on its websites pseudonymized through a cookie identifier "Cookie ID" that allows it to analyze how the user accesses and interacts with its website through their device and its internal identifier to analyze the results at a statistical level. The "Booking ID" (internal booking identifier) is used by EDREAMS to identify the sales conversion rate. Likewise, the "Checked Booking ID" allows them to know how many people have entered the "Manage my booking" section and have selected to cancel or modify it.

The "Session, Session or eDOuser ID" allow minimizing the amount of data that EDREAMS has in Google Analytics and are used to resolve technical issues.

For all these reasons, the data is limited to how users, through their devices, interact with the EDREAMS website (internal browsing data of the website).

In no case are special categories of data defined in Article 9.1 of the GDPR processed, nor are data from particularly vulnerable persons processed. Non-pseudonymized data is also not processed.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

31/92

TENTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, GOOGLE may have knowledge of users' personal data automatically, as the information is stored on its own platform. The code for the Google Analytics tool is integrated directly when the user accesses the EDREAMS website. Any purpose that deviates from analyzing the use of the aforementioned website, such as advertising, will not be activated until prior consent from the user is obtained. That is, in the event that the user does not provide consent, Google Analytics will not connect with Google Ad Manager and Google Ads in any way.

ELEVENTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, the data is stored for a period of 26 months, which is the period that allows for comparisons against the previous year.

TWELFTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, the data was stored according to clause 10.3 of the current document "Conditions for the processing of Google Ads data," the terms or configuration of which did not allow changes by EDREAMS.

THIRTEENTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, of the five purposes for sharing data with GOOGLE, only EDREAMS had activated the technical support service of GOOGLE so that they could resolve any incidents, without GOOGLE being able to use it for other purposes.

FOURTEENTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, the cookies are not refreshed even if the user revisits the website, so the duration of 13 months is static.

FIFTEENTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, apart from the Google Analytics tool itself, the data is connected with other services when prior consent is given with:

Google Ads Linking: which links the Google Ads account to Analytics allowing for a complete view of the customer cycle, from how users interact with marketing to how the established goals on the website are ultimately achieved.

AdSense Linking: which allows viewing AdSense data in Analytics, as well as key Analytics metrics on the AdSense homepage cards.

Google Ad Manager Linking: once the Ad Manager and Analytics accounts are linked, Ad Manager metrics will be available in Analytics.

Optimize and Tag Manager linking: Google Optimize allows testing and personalizing the website using Google Analytics data for measurement and targeting.

Ad Exchange Linking: which allows receiving data from the Ad Exchange within the Analytics account regarding advertising statistical data.

Campaign Manager 360 Linking: which enables the import of statistical data from Campaign Manager 360 campaigns and cost data into Analytics 360.

SIXTEENTH: As of 10/12/2020, EDREAMS had the following services linked to the Google Analytics tool:

a. "AdSense. Actively linked. Receiving information. AdSense helps you earn money by displaying ads on your website that are relevant to your audience. [...]"

b. "Google Ads. Actively linked. Sending and receiving information. Google Ads is an online advertising program that helps you reach your customers and grow your business, improves your ad

campaigns, and analyzes the complete customer journey—from clicking on the ad to conversion."

c. "Ad Exchange. Actively linked. Receiving information. Ad Exchange helps you earn money by displaying ads on your website that are relevant to your audience. It correlates key AdExchange metrics, such as eCPM and unit impressions, with more Analytics data."

d. "Campaign Manager 360. Actively linked. Receiving information. Campaign Manager 360 is an ad management and publishing solution that helps agencies and advertisers manage the total reach of digital advertising programs. This integration allows Google Analytics 360 customers to view and analyze Campaign Manager 360 data in Analytics."

e. "Google Optimize and Tag Manager for website and app optimization. Actively linked. Receiving information. Google Optimize allows you to test and personalize your website using Google Analytics for measurement and personalization. [...]"

f. "Search Console. Actively linked. Receiving information. Search Console can help you understand how users find your website through Google searches, identify ways to attract more attention to your website, and prioritize development efforts."

SEVENTEENTH: As of 10/12/2020, EDREAMS had the following configuration for the Google Analytics account in the "Data Sharing Settings" section:

a. "Google product&services.;" Not selected.

b. "Benchmarking." Not selected.

c. "Technical Support." Selected.

d. "Account specialists." Not selected.

e. "Give all Google sales experts Access to your data and account so you can get more in-depth analysis, insights, and recommendations across Google products." Not selected.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

33/92

26 months was the retention period, with a minimum selectable period of 14 months and a maximum of 50 months. There was also the selectable option not to automatically delete the data after a specific period, but it was not selected.

EIGHTEENTH: As of 10/12/2020, GOOGLE IRELAND LTD. acted as the data processor.

NINETEENTH: As of 10/12/2020, in the adhesion contract proposed by GOOGLE "Conditions for the processing of Google Ads data," ***URL.21 it stated that:

"[...]"

2.5 In the event that these Conditions for data processing are translated into any other language and there is any discrepancy between the English version and the translated text, the English version shall prevail.

"[...]"

TWENTIETH: According to its response dated 10/12/2020, in response to a request from this Agency, from the same day the STJUE C-311/18 was published, EDREAMS considered that they needed to update their contract by removing the legal basis of the Privacy Shield and including the Standard Contractual Clauses, which should analyze the risks for the data subjects taking into account the type of personal data processed, and that they should review the additional measures beyond those already contained in the Standard Contractual Clauses. Regarding the Privacy Shield, GOOGLE proposed its new version with changes to the "Conditions for the processing of Google Ads data" within a month (August 16, 2020). The transfer of the IP address of the website visitor was eliminated.

TWENTY-FIRST: According to its response dated 10/12/2020, in response to a request from this Agency, in an email sent between EDREAMS and GOOGLE on September 24, GOOGLE stated that it had implemented the following additional safeguards to ensure the protection of data in Google Analytics:

i. Google Analytics ensures the secure transmission of its Javascript libraries and measurement data through the HTTP Strict Transport Security (HSTS) protocol. ***URL.22.

ii. IP Anonymization. GOOGLE offered the possibility of anonymizing IP addresses. If this option is

activated, the IP addresses are deleted immediately after collection and are never stored on disk. This measure was implemented from eDreams ***URL.23.

iii. Google has obtained ISO 27001 certification in relation to Google Analytics.

iv. According to GOOGLE, they have a team that carefully reviews each user data request they receive from government authorities. Transparency report at URL.24 and their policies at URL.25.

v. Encryption to protect personal data against interception in transit.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

34/92

TWENTY-SECOND: As stated in your response dated 10/12/2020, in response to a request from this Agency, the legal basis for the international transfer of data is based on the Privacy Shield until its annulment and the standard contractual clauses adopted by the Commission since August 2020, along with the appropriate supplementary measures provided by GOOGLE. The standard contractual clauses can be found at

TWENTY-THIRD: As stated in your response dated 10/12/2020, in response to a request from this Agency, in the event that any U.S. security agency wishes to gain access to the data collected by EDREAMS in the Google Analytics Tool, it would first not be able to do so directly, without sending a request to Google, as such data is encrypted. Furthermore, Google has internal processes to challenge any request from the U.S. administration that it considers disproportionate or incompatible with European data protection regulations or with the Standard Contractual Clauses.

However, in the hypothetical case that the corresponding U.S. agency were to access the data, it would not be able to know which specific person is behind the data collected in the Tool through the identifiers, as only personal data that would allow for direct identification is protected by EDREAMS and stored within the European Economic Area.

TWENTY-FOURTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, "EO 12333 (...) organizes and assigns functions and responsibilities to the intelligence community of the United States and articulates high-level principles that all intelligence activities must comply with. The specific intelligence activities conducted under EO NO 12333 are subject to more specific application procedures (which may be classified) that include safeguards and protections appropriate for that type of intelligence activity. EO 12333 primarily governs intelligence activities conducted outside the United States. It is understood that EO 12333 allows the United States to carry out electronic surveillance outside the United States in accordance with U.S. legal requirements; it does not authorize electronic surveillance within the United States nor impose requirements on service providers inside or outside the United States.

Article 702 of the FISA Amendments Act, which also requires the U.S. Government to minimize the use and dissemination of data, has two components:

Article 702 "Upstream" authorizes U.S. authorities to collect data traveling through the "backbone" infrastructure of the Internet controlled by U.S. electronic communication service providers (for example, U.S. telecommunications providers). To the extent that the data of any user or customer traverses networks subject to the collection under section 702 of Upstream, that data is encrypted in transit as described above.

2 Executive Order 12333 of the United States (hereinafter, EO 12333 or EO 123333)

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

35/92

Section 702 "Downstream" authorizes U.S. authorities to obtain specific data directly from electronic communication service providers. To the extent that Google LLC may be subject to specific requests related to Google customer data under Section 702 Downstream, we carefully review each request we

receive under FISA regulations in accordance with the guidelines described below to ensure that it meets all applicable legal requirements and Google policies.

TWENTY-FIFTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, Google declares that if any government were to request access to personal data stored in Google's systems during an investigation, a dedicated team of Google lawyers and specially trained personnel will carefully review the request to verify that it is legal, appropriate, and complies with Google policies.

Google states that Google's infrastructure is not designed to, and does not provide the U.S. government or any other government with "backdoor" access to customer data or to its servers that store customer data. Furthermore, Google states that it employs robust technical measures (such as encryption) to protect against interception in transit, including attempts at surveillance by government authorities worldwide.

Google states that Google Analytics uses the HTTP Strict Transport Security (HSTS) protocol by default, which instructs browsers that support HTTP over SSL (HTTPS) to use that encryption protocol for all communications between end users, websites, and Google Analytics servers.

Google states that it protects service-to-service communications at the application layer through a mutual authentication and encryption system. Google states that after a handshake protocol between the client and server is completed and the client and server negotiate the shared cryptographic secrets necessary to encrypt and authenticate network traffic, AL TS ensures RPC (Remote Procedure Call) traffic by enforcing integrity, and optional encryption, using the negotiated shared secrets. Google supports multiple protocols to ensure integrity, for example, AES-GMAC (Advanced Encryption Standard) with 128-bit keys. Whenever traffic leaves a physical boundary controlled by or on behalf of Google, for example, in transit over a WAN (Wide Area Network) between data centers, all protocols are automatically updated to provide encryption as well as integrity guarantees.

Google states that it encrypts Google Analytics data that is stored at rest in its data centers using the Advanced Encryption Standard. Each data center is protected with six layers of physical security designed to prevent unauthorized access.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

36/92

Encryption "at rest" in this section refers to the encryption used to protect user data stored on a disk (including solid-state drives) or on backup media. All user data is encrypted at the storage level, generally using the Advanced Encryption Standard (AES256). Data is typically encrypted at multiple levels in Google's production storage stack in data centers, even at the hardware level, without any action required from Google customers. Google states that it uses common cryptographic libraries that incorporate Google's validated FIPS 140-2 module to implement encryption consistently across all products. The consistent use of common libraries means that only a small team of cryptographers needs to implement and maintain this tightly controlled and reviewed code.

Google states that it builds exclusive servers for its data centers and maintains a leading security team in the industry to ensure that Google's data centers are among the most secure in the world. Google's production data centers are protected by multiple layers of security to prevent any unauthorized access to data. Google states that it limits access to personal advertising and analytics data to Google personnel who need it to perform their jobs. Google states that customers using Google Analytics can enable IP anonymization to instruct Google to anonymize all IP addresses immediately after they are collected. If enabled, the full IP address is never written to disk, as all anonymization occurs in memory almost instantaneously after the request is received. Google states that to the extent that Google Analytics data for measurement transferred by customers consists of personal data, it should be considered pseudonymous. The Google Analytics terms of service mandate that no data that Google could use or recognize as personally identifiable information (PII) be transferred to Google. Google has obtained ISO 27001 certification and will allow customers or a third-party auditor designated by a

customer to conduct audits (including inspections) to verify compliance with Google's obligations.

TWENTY-SIXTH: As of February 3, 2021, the link ***URL.26 in the EDREAMS privacy policy stated that:

[...]

V. Marketing Activities. We use your information for marketing purposes, among others:

[...]

II. Information we automatically collect when you use our services.

a. Information from your device (for example, your IP address, browser type, Internet service providers, geographical location, technical information about the device, the time and duration of the request and visit, and the method used to send your request to the server). When you visit our websites or our app, we automatically collect certain information from your device. Please note that we may associate this information with your account.

b. Other technical information, for example, how your device has interacted with our website or our app (for example, the pages you accessed, the links you clicked on, etc.) or other means.

[...]

If you register on our website with a social network account, link the account you use on our website with your social network account, or use any other of our social media features, we may access information about you through that social network provider, in accordance with that provider's policies. The information may include your name, email address, profile picture, gender, friend list, and any other information you authorize us to receive.

Some of this information may be collected through cookies or similar tracking technology. The processing of information collected through cookies is based on different legal grounds (for example, it may be necessary to provide our services based on your consent). For more information, please see our Cookie Policy.

[...]

III. International data transfers. Our servers are located in the European Union. However, to facilitate our global operations (carried out by external service providers), the transmission of personal data to the previously described recipients may include international transfers of personal data to countries whose data protection laws are not as comprehensive as those of countries within the European Union. In these situations, as required, we enter into contractual agreements to ensure that your personal data remains protected in accordance with European standards.

[...]"

TWENTY-SEVENTH: As of February 3, 2021, the URL ***URL.27 stated that (unofficial translation, in English in the original):

"Google Ads Data Processing Terms: Standard Contractual Clauses (Processors)

For the transfer of personal data to processors established in third countries that do not ensure an adequate level of data protection.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

38/92

Name of the organization exporting the data: the entity identified as the "Client" in the Data Processing Terms (the data exporter)

and

Name of the organization importing the data: Google LLC, 1600 Amphitheatre Parkway, Mountain View, California 94043 USA (the data importer)

[...]

Clause 4

Obligations of the data exporter

The data exporter agrees and warrants:

(a) that the processing, including the transfer itself, of personal data has been and will be carried out in

accordance with the relevant provisions of applicable data protection legislation (and, where applicable, has been notified to the relevant authorities of the Member State where the data exporter is established) and does not violate the relevant provisions of that State;

(b) that it has instructed and during the duration of the data processing services will instruct the data importer to process the transferred personal data only on behalf of the data exporter and in accordance with applicable data protection legislation and the Clauses;

(c) that the data importer will provide sufficient guarantees regarding the technical and organizational security measures specified in Appendix 2 of this contract;

(d) that after analyzing the requirements of applicable data protection legislation, the security measures are adequate to protect personal data against accidental or unlawful destruction or accidental loss, alteration, unauthorized disclosure or access, particularly if the processing involves the transmission of data over a network, and against any other form of unlawful processing, and that these measures ensure a level of security appropriate to the risks presented by the processing and the nature of the data to be protected, taking into account the state of the art and the cost of their implementation;

[...]

Clause 5

Obligations of the data importer

The data importer agrees and warrants:

(a) to process the personal data only on behalf of the data exporter and in compliance with its instructions and the Clauses; if it is unable to comply for any reason, it agrees to duly inform the data exporter of its inability to comply, in which case the data exporter may suspend the transfer of the data and/or terminate the contract;

(b) that it has no reason to believe that applicable legislation prevents it from complying with the instructions received from the data exporter and its obligations under the contract and that in the event of a change in this legislation that is likely to have a substantial adverse effect on the guarantees and obligations established by the Clauses, it will immediately notify the data exporter of the change as soon as it becomes aware, in which case the data exporter may suspend the transfer of the data and/or terminate the contract;

(c) that it has implemented the technical and organizational security measures specified in Appendix 2 prior to processing the transferred personal data;

(d) that it will immediately notify the data exporter about:

(i) any legally binding request for disclosure of personal data by a law enforcement authority unless prohibited, such as a prohibition under [...]

[...]

Clause 8

Cooperation with supervisory authorities

1. The data exporter agrees to deposit a copy of this contract with the supervisory authority if such request or deposit is mandatory under applicable data protection legislation.

2. The parties agree that the supervisory authority has the right to conduct an audit of the data importer, and of any sub-processor, which has the same scope and is subject to the same conditions that would apply to an audit of the data exporter under applicable data protection legislation.

[...]

Appendix 2 to the Standard Contractual Clauses

This Appendix forms part of the Clauses.

Description of the technical and organizational security measures implemented by the data importer in accordance with Clauses 4(c) and 5(c) (or attached document/legislation):

The data importer currently complies with the Security Measures set out in Appendix 2 of the Data Processing Terms at ***URL.28.

[...]

TWENTY-EIGHTH: As of February 3, 2021, the URL ***URL.29 stated:

C/ Jorge Juan 6

www.aepd.es
28001 - Madrid
sedeagpd.gob.es
40/92

"Conditions for the processing of Google Ads data

Google and the counterparty accepting these Conditions (the "Client") have entered into a contract for the provision of processing services (with its specific amendments, the "Contract").

These data processing conditions for Google Ads (the "Data Processing Conditions") are subscribed to by Google and the Client and complement the Contract.

[...]

Introduction

These Data Processing Conditions reflect the agreement of the parties regarding the conditions governing the processing of certain personal data in relation to European data protection legislation and certain non-European data protection legislation.

Definitions and interpretation

[...]

"European or National Laws": as applicable: (a) the laws of the EU or its Member States (if the EU GDPR applies to the processing of the Client's Personal Data); and/or (b) the law of the United Kingdom or a part of the United Kingdom (if the UK GDPR applies to the processing of the Client's Personal Data).

[...]

"Google": the Google Entity that is a party to the Contract.

"Sub-processors of Google's data processing subsidiaries" has the meaning given in Section 11.1 (Consent for engaging the data processor).

"Google Entity": Google LLC (formerly known as Google Inc.), Google Ireland Limited, or any other subsidiary of Google LLC.

[...]

5. Data Processing

5.1 Roles and compliance; authorization.

5.1.1 Responsibilities of the data processor and the data controller. The parties acknowledge and agree that:

C/ Jorge Juan 6

www.aepd.es
28001 - Madrid
sedeagpd.gob.es

41/92

(a) Appendix 1 describes the purpose and details of the processing of the Client's Personal Data;

(b) Google is a data processor of the Client's Personal Data under European data protection legislation;

(c) The Client is a data controller or data processor, as applicable, of the Client's Personal Data under European data protection legislation; and

(d) each party will fulfill its obligations under European data protection legislation regarding the processing of the Client's Personal Data.

[...]

5.2 Client instructions. By entering into these Data Processing Conditions, the Client instructs Google to process the Client's Personal Data only in accordance with applicable law: (a) to provide the processing services and any related technical support; (b) as specified further through the Client's use of the processing services (including the configuration and other functionalities of the processing services) and any related technical support; (c) as documented through the Contract, including these Data Processing Conditions; and (d) as documented in other instructions provided in writing by the Client and acknowledged by Google as constitutive instructions for the purposes of these Data Processing Conditions.

5.3 Compliance with instructions by Google. Google will comply with the instructions described in Section 5.2 (Client instructions) (including those related to data transfers), unless the European or National Laws to which Google is subject require another processing of personal data by Google, in which case Google will inform the Client (unless any of such laws prohibit Google from doing so for significant public interest reasons).

[...]

10. Data Transfers

10.1 Data storage and processing facilities. The Client agrees that Google, without prejudice to Section 10.2 (Data Transfers), may store and process the Client's Personal Data in any country where Google or any of its data processors maintain facilities.

10.2 Data Transfers. If the storage and/or processing of the Client's Personal Data involves transfers of the Client's Personal Data from the EEA, Switzerland, or the United Kingdom to any third country that is not subject to an adequacy decision under European data protection legislation:

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

42/92

(a) It shall be considered that the client (as data exporter) has entered into the Standard Contractual Clauses with Google LLC (as data importer);

(b) the transfers shall be subject to the Standard Contractual Clauses; and

(c) Google shall ensure that Google LLC complies with its obligations under such Standard Contractual Clauses with respect to such transfers.

[...]

11. Sub-processors of data.

11.1 Consent for the engagement of the Sub-processor of data.

The Client specifically authorizes the engagement of Google's subsidiaries as Sub-processors of data ("Google Subsidiary Sub-processors"). Furthermore, the Client generally authorizes the engagement of other third parties as Sub-processors of data ("Third-party Sub-processors"). If the Standard Contractual Clauses apply under Section 10.2 (Data Transfers), the above authorizations constitute the Client's prior written consent for Google LLC to subcontract the processing of the Client's Personal Data.

[...]

TWENTY-NINTH: On February 3, 2021, the following was stated at the URL ***URL.30:

"[...]

Requests from U.S. government agencies in cases involving national security

In investigations related to national security, the U.S. government may use a National Security Letter (NSL) or one of the authorizations granted under the Foreign Intelligence Surveillance Act (FISA) to compel Google to provide user information.

An NSL does not require judicial authorization and can only be used to compel us to provide limited subscriber information.

FISA orders and authorizations can be used to compel electronic surveillance and the disclosure of stored data, including the content of services such as Gmail, Drive, and Photos."

[...]" (unofficial translation, in English in the original)

THIRTIETH: On February 3, 2021, the following was stated at the URL ***URL.31:

"[...]

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

43/92

Basics about personally identifiable information in Google contracts and policies.

In many contracts, terms of service, and policies of Google's advertising and measurement products, reference is made to "personally identifiable information" (PII).

This is a categorization of data different from what the General Data Protection Regulation (GDPR) considers "personal data."

Please note that, although Google does not identify certain data as personally identifiable information, the GDPR may do so, or such data may be considered personal information under the California Consumer Privacy Act (CCPA), and may be subject to those laws.

[...]

Google considers "personally identifiable information" to be information that can be used alone to identify or locate a person accurately, or to contact them directly. Among other data, it includes the following:

- Email addresses
- Postal addresses
- Phone numbers
- Precise locations (e.g., GPS coordinates, except in cases mentioned below)
- Full names (first and last name) or usernames.

[...]

Among others, Google does not consider the following data to be personally identifiable information:

- Pseudonymous cookie IDs
- Pseudonymous advertising IDs
- IP addresses
- Other pseudonymous end-user identifiers

For example, if an IP address is sent with an ad request (something that happens with almost all ad requests as a result of Internet protocols), that submission will not violate any prohibition related to sending personally identifiable information to Google.

Please note that, although Google does not identify certain data as personally identifiable information, the GDPR, CCPA, or other privacy laws may consider them personal data or personal information.

[...]"

THIRTY-FIRST: On February 1, 2021, after visiting the website www.edreams.es while logged into a test account of Google, the visit to that website was reflected within the section "Web and App Activity."

THIRTY-SECOND: On February 17, 2021, it was verified, after deleting cookies, that:

1. After logging into a Google account, cookies such as NID, LSID, SID, __Secure-3PSID, __Secure-3PAPISID are installed in the browser, all of which are more than 30 alphanumeric characters where uppercase and lowercase letters are allowed and have an expiration period from 6 months to several years. Cookies such as _ga, _gid are not installed.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

44/92

2.

That while logged into the Google account and after visiting ***URL.15, rejecting all cookies and conducting a search for a rental car from Madrid-Airport to Málaga-Airport with a rental start date of 25/02/2021 and an end date of 28/02/2021, it is verified that the cookies _ga, _gid among others are installed. It is also verified that there is an HTTP GET request to the domain google-analytics.com in which the parameters within the URL of the request include, among others, data such as:

a.

the cookie _ga within the parameter cid and the cookie _gid.

b.

the visited URL (***URL.32) and, among other data, the operation performed within it, encoded as:

"pickupDateTime": "2021-02-25"

"returnDateTime": "2021-02-28"

"pickupName": "%3DMadrid%2520-%2520Aeropuerto"

"returnName": "%3DM%25C3%25A1laga%2520-%2520Aeropuerto"

c.

the parameter "sr".

3.

That in the headers of the HTTP GET there are also data such as "user-agent" and "accept-language".

THIRTY-THIRD: On March 4, 2021, it is verified that, after logging into a Google account, followed by a logout and then a navigation on ***URL.15 corresponding to a flight plus hotel search from March 19 to 21, selecting Madrid as the origin and Málaga as the destination:

1.

There is an HTTP POST request to the domain google-analytics.com where data is sent as payload, among others:

"***URL.15"

"sr=1920x1080"

the parameter "cid" which matches the value of the cookie _ga

the parameter _gid which matches the value of the cookie _gid

the departure and return dates, as well as the departure and arrival cities.

2.

That in the headers of the HTTP POST there are also data such as "user-agent" and

"accept-language".

THIRTY-FOURTH: On June 23, 2021, it is verified that, after logging into a Google account, a navigation on the website ***URL.15 is performed:

1.

There is an HTTP GET request to the domain adservice.google.com where the same value contained in the cookie _ga is sent as parameter u1, as well as the parameters "user-agent" and

"accept-language". It is also verified that in this same HTTP GET request the cookie NID is sent.

It is verified, on different dates, that the domain google-analytics.com as well as several IP addresses corresponding to that domain are assigned to GOOGLE LLC

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

45/92

THIRTY-FIFTH: According to the document dated May 12, 2021, the total number of users during the period from April 1, 2020, to March 31, 2021, for the website ***URL.15 as well as other versions of the page aimed at other countries is, for example, in the German market 1,623,842 visits, in the Spanish market 13,344,019 visits, and in the French market 12,682,624 visits. The total number of users during the described period is 72,648,400 visits.

THIRTY-SIXTH: According to the document dated May 12, 2021, the version used by EDREAMS was Google Analytics 360, since July 2012.

THIRTY-SEVENTH: According to the document dated May 28, 2021, the establishments of EDREAMS that process personal data in the context of this complaint are Germany, Spain, France, Italy, United Kingdom.

THIRTY-EIGHTH: According to the document dated May 28, 2021, (...).

THIRTY-NINTH: On October 27, 2021, it is verified that in the plenary session of the European Data Protection Committee dated September 2, 2020, it was decided to create a working group to ensure a coherent approach among European data authorities to manage the 101 complaints from NOYB, which concern similar issues (the complainant has visited a website of a data controller while logged into their Google or Facebook account linked to their email address. And the data controller had embedded code from Google or Facebook services, which had transferred their personal data to the United States without having a legal basis for it).

FORTIETH: According to the diligence of October 27, 2021, GOOGLE LLC sent to the Austrian data

protection authority a document dated April 9, 2021, which it shares with the other authorities through the Working Group for the 101 complaints of NOYB in the context of the CJEU ruling Schrems II (“101 taskforce”, hereinafter, working group TF101). The document in question contains the following information and statements (from its unofficial translation from English):

(...)

FORTY-FIRST: As of November 2, 2021, the website ***URL.1 is also available for the following EEA countries: Czech Republic, France, Italy, Romania, Germany, Greece, Netherlands, Poland, Hungary, Portugal.

FORTY-SECOND: As of November 2, 2021, in the URL ***URL.33 there was information about FISA (Foreign Intelligence Surveillance Act) and NSL (National Security Letters) requests directed to GOOGLE regarding user information.

FORTY-THIRD: On March 24 and 25, 2022, in the description of Google Analytics available at URLs ***URL.34 and ***URL.35, it was stated, among other information, that the cookies _ga and _gid were used to distinguish users and that the parameter “sr” referred to screen resolution.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

46/92

And that, through the execution of tracert commands to various IP addresses assigned to GOOGLE LLC in relation to the domain google-analytics.com, the RTT times are too low for said destination IPs to be geographically located in the United States.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the provisions of Articles 58.2 and 60 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data (GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 and 68.2 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary issues

In this case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since EDREAMS collects and processes, through the Google Analytics service, among others, the following personal data of natural persons: unique user identifiers (_ga and _gid), the IP address, as well as other data associated with the browser and the browsing itself, among other processes.

EDREAMS carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR. Furthermore, it is a cross-border processing, given that EDREAMS is established in Spain, although it provides services to other countries in the European Union.

In response to the information request made by this Agency on December 10, 2020, EDREAMS communicated that it had decided to integrate the functionality of Google Analytics into its website and that the statistics obtained through Google Analytics affected individuals from several member states of the European Union. Therefore, the processing activity resulting from the integration of the Google Analytics functionality into its website fits the definition of cross-border processing in the sense of Article 4.23.b) of the GDPR.

The GDPR provides, in its Article 56.1, for cases of cross-border processing, as foreseen in its Article

4.23), regarding the competence of the lead supervisory authority, that, without prejudice to the provisions of Article 55, the supervisory authority of the main establishment or the only establishment of the controller or processor shall be competent to act as the lead supervisory authority for the cross-border processing carried out by such controller or processor in accordance with the procedure established in Article 60. In the case examined, as stated, EDREAMS has its only establishment in Spain, so the Spanish Data Protection Agency is competent to act as the lead supervisory authority. On its part, Article 44 of the GDPR regulates the transfer of personal data to third countries.

III

Response to the allegations made by EDREAMS

A) In response to the allegations presented by the entity under investigation regarding the initiation agreement, the following should be noted:

“PRELIMINARY: FACTUAL ISSUES THAT HAVE A RELEVANT IMPACT ON THE PROCEDURE, IN PARTICULAR ISSUES OF CONFIGURATION OF THE GOOGLE ANALYTICS SERVICE AND SUBSTANTIAL REGULATORY CHANGE IN THE U.S.

1.- EDREAMS' PRIVACY CONFIGURATION OF THE GOOGLE ANALYTICS SERVICE.”

The main argument of this allegation is that EDREAMS has selected the most privacy-friendly configuration for users, especially since EDREAMS voluntarily keeps the Google Signals functionality disabled, which, according to EDREAMS, prevents the identification of users by any Google company. In response to this allegation, it should be noted that this privacy configuration does not prevent the transfer of data subject to this procedure. As will be elaborated further in the response to the second allegation, it is not, as EDREAMS claims, about knowing the identity of individuals: “However, Google companies lack the ability to identify users as a result of the service configuration selected by EDREAMS.” As already stated in the initiation agreement, it is not necessary to know the name or the (physical) address of the visitor, since, according to Recital 26 of the GDPR, the singularization of individuals through unique identifiers is sufficient for the visitor to be identifiable: “Pseudonymized personal data, which could be attributed to a natural person through the use of additional information, should be considered information about an identifiable natural person. To determine whether...

48/92

a natural person is identifiable, all means, such as singularization, that the data controller or any other person may reasonably use to identify the natural person directly or indirectly must be taken into account.”

For all the above reasons, this allegation is dismissed.

“2.- SUBSTANTIAL REGULATORY CHANGE IN THE U.S. REGARDING REQUESTS FOR ACCESS TO PERSONAL DATA BY GOVERNMENT AUTHORITIES.”

The main argument of this allegation refers to a series of regulatory changes that have occurred in the U.S. regarding data protection.

In response to this allegation, it should be noted that the regulatory change referred to by EDREAMS that has occurred in the U.S. with the adoption of new legislative measures regarding data protection, specifically, the approval of Executive Order 14086 of October 7, 2022, supplemented by the Regulation concerning the Data Protection Review Court, through which binding safeguards are established that limit access to data by U.S. intelligence authorities, providing a higher level of privacy protection for individuals worldwide, and, finally, with the creation of an independent and impartial appeals authority, does not modify the established facts of this procedure, since at the date to which they refer, EDREAMS made international transfers to the U.S. based on an adequacy decision that had been declared null by the CJEU. This Agency considers the doctrine established by the Court of Justice of the European Union in the ruling of the Schrems II case to be fully applicable at the time of the facts, by which the decision on the “EU-US Privacy Shield” was invalidated, since, although it is true that a new adequacy decision has been adopted by the European Commission, it was not in force at the date of the opening of this sanctioning procedure.

For all the above reasons, this allegation is dismissed.

“3.- DELAY BY THE AEPD IN PROVIDING THE SANCTIONING FILE AND CONSEQUENT LATE ACCESS BY EDREAMS AND DEFENSELESSNESS. CONSEQUENCES DERIVED FROM THE

VOLUME OF THE FILE AND THE INSUFFICIENCY OF TIME TO PROCEED WITH ITS ANALYSIS.”

In this allegation, EDREAMS argues that it has not had sufficient time to analyze the file due to late access to it and because of its volume.

In response to this allegation, it should be noted, first of all, that EDREAMS, before receiving the copy of the file, was already aware of a good part of the data contained in the documents that make up the file, both from the complaint and from the documentation provided by EDREAMS itself in its response to the information request made by this Agency and from the Agreement to Initiate, in which some of the documents referred to, such as the

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

49/92

The contracting clauses of Google in their various versions are available to any internet user.

Secondly, in response to the written request submitted by EDREAMS for a copy of the file, a copy of the file was made. Due to the size of the document, it could not be sent electronically as is customary practice in this Agency. Due to this technical impossibility, it was decided to send the copy of the file in electronic format via courier, for which the staff of this Agency responsible for such functions confirmed the address by phone with personnel from EDREAMS, which at that time was recorded in the database of this Agency, to which the shipment was sent on December 12, 2022.

Despite the aforementioned verification, as stated in the receipt issued by the courier company in the file, on December 13, 2022, when there were still 6 business days left until the deadline for submitting allegations, the courier from the courier company was unable to deliver the shipment for the following reason: “Unknown recipient at the delivery address.” After this first delivery attempt, contact was made again with EDREAMS to confirm the address. Therefore, the delay in delivering the copy of the file is due to EDREAMS not having notified this Agency of the change of address.

On December 15, 2022, when there were four business days left until the last day for submitting allegations, staff from this Agency provided the copy of the file in person to a citizen acting on behalf of EDREAMS, to whom the copy could not be provided two days earlier when he appeared before this Agency without proving such representation.

Finally, EDREAMS maintains in the same manner both the lack of time to analyze the computer language of the actions recorded in the file, and that the study of this language is unnecessary because “...the thousands of pages of code transcribed in the file and that serve as evidence cannot reflect the reality of the Google Analytics Service” due to the change in configuration of this tool.

For all the above reasons, this allegation is dismissed.

“FIRST.- NULLITY OF THE SANCTIONING ADMINISTRATIVE PROCEDURE AND INFRINGEMENT OF THE COOPERATION PROCEDURE OF ARTICLE 60 GDPR”

EDREAMS alleges that the procedure established in Article 60 of the GDPR has been infringed by not analyzing the applicable regulations in the United States.

In response to this allegation, it should be noted that the initiation agreement examines the current regulations on data protection in the U.S. at the time of the events subject to the complaint, that is, in the year 2020. For the treatment in question, GOOGLE LLC must be classified as a provider of electronic communications services in the sense of subsection (b) of point 4 of Article 1881 of Title 50 of the United States Code and, therefore, is subject to

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

50/92

surveillance by U.S. intelligence services in accordance with subsection (a) of Section 1881 of Title 50 of the United States Code ("FISA 702"). Therefore, Google LLC has the obligation to provide personal data to the government of the United States when requested in accordance with subsection (a) of Section 1881 of Title 50 of the United States Code (FISA 702).

As previously indicated in the response to point 2 of EDREAMS' preliminary allegations, the regulatory change that has occurred in the U.S. after the events in question cannot be applied to the present proceedings. Furthermore, EDREAMS' interpretation of the new U.S. data protection regulations does not, by itself, determine the legality of the international data transfer, as it must comply with the provisions set forth in Chapter V of the GDPR. In summary, it cannot be considered that there was an adequacy decision by the Commission in the terms required by Article 45 of the GDPR in 2021. For all these reasons, it is not appropriate for the other data protection authorities of the EU Member States to be consulted in this regard. Additionally, none of these authorities has made comments or objections to the draft decision to initiate sanctioning proceedings in the sense that EDREAMS presents in its allegations, regarding the assessment of the impact of the new regulatory framework on data protection in the U.S. As EDREAMS concludes on this point, the current legal framework in the U.S. has been analyzed by the Commission and has declared that for the purposes of Article 45 of the GDPR, the United States guarantees an adequate level of protection for personal data transferred from the Union to organizations in the United States listed in the "Data Privacy Framework," but this declaration does not prevent data protection authorities from assessing the existence of violations for transfers made to the U.S. prior to the new Commission decision of 10/07/2023.

For all the above reasons, this allegation is dismissed.

"SECOND.- DUE TO THE CONFIGURATION OF EDREAMS' GOOGLE ANALYTICS TOOL, THERE ARE NO INTERNATIONAL TRANSFERS OF PERSONAL DATA REGARDING IPs, AND THE IDENTIFIERS ARE PSEUDONYMIZED DATA"

EDREAMS states that it uses Google Analytics with "the most privacy-friendly configuration for users," disabling the Google Signals functionality at the end of 2020 for all its websites, thereby preventing the identification of users by any Google company, according to EDREAMS.

In response to this allegation, it should be noted that, as evidenced by the actions carried out by this Agency in the prior investigation proceedings dated February 17, 2021, and March 4, 2021, this configuration of Google Analytics does not prevent the sending of the data referred to in point 2, "On the qualification of the data subject to processing as personal data," of Legal Basis IV of this resolution. The actions of the inspector in the diligence of February 17, 2021, conducted on February 16, 2021, were carried out

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

51/92

"After logging into a Google account," and the actions of March 4, 2021, "...after logging into a Google account, followed by a logout...", which demonstrates that the transfer of personal data was carried out regardless of whether a session had been initiated in a Google account or not.

Specifically, regarding the characteristics referred to by EDREAMS in its allegations, it should be noted:

- The function of Google Analytics for anonymizing the collected IP addresses:

1.- "The anonymization/masking of IPs occurs as soon as the data is received": This does not prevent the collection of the IP, which in itself constitutes the processing of personal data of the interested parties, regardless of its subsequent anonymization. For example, in Google Analytics 4, according to the "Privacy and Data in the EU" of Google ***URL.36, "...the IP address data is used solely to obtain geolocation data and is discarded immediately," so information that can be provided by the IP is indeed used before anonymization. The mere act of collecting the IP constitutes a processing operation. During the visit to the website ***URL.15", Google LLC processed the personal data of the claimant and all users who accessed the aforementioned website (at least the IP address and cookie data). In accordance with point 10 of the "Conditions for the processing of Google Ads data," the data controller has agreed that Google may process personal data of the client (in this case, of EDREAMS users) in the U.S., among others. Therefore, any IP address may be transmitted to the United States and shortened only in a second step after its export. There, from a technical point of view, there is the possibility of accessing the complete IP address before its anonymization. Furthermore, it should be

noted that the measure is optional and not applicable to all transfers.

2.- "The anonymization/masking takes place in the data centers closest to where a user is located":

First, it is not explicitly stated that the data is processed in the EU, but this deduction is made based on localization criteria, and second, there is no technical evidence nor is there any way to substantiate the claim that the anonymization of the IP always occurs within the European Economic Area.

- Online identifiers:

According to EDREAMS, "any possible international transfer of that information by Google Ireland to Google LLC will result in pseudonymized data." It is not necessary for the data to be directly related to an identified person, as stated in point 2, "On the qualification of the data subject to processing as personal data," of Legal Basis IV of this resolution "...Visitor identifiers are unique identifiers intended to differentiate individuals (where that differentiation was not possible before), and make individuals identifiable...For this reason, when several elements are combined, they can allow for the individual identification of visitors to the website 'www.edreams.es', where Google Analytics is implemented..."

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

52/92

with the clear wording of Article 4, paragraph 1, of the GDPR, the term "personal data" is completed when an entity can (has the possibility to) do so, since they can be of identifiable persons."

It is not, as EDREAMS states, about knowing the identity of the individuals: "However, Google companies lack the ability to identify users as a result of the service configuration selected by EDREAMS." As already stated in the initiation agreement, it is not necessary to know the name or the (physical) address of the visitor, since, according to Recital 26 of the GDPR, such qualification of individuals is sufficient for the visitor to be identifiable: "To determine whether there is a reasonable likelihood that means will be used to identify a natural person, all objective factors must be taken into account, such as the costs and time required for identification, considering both the technology available at the time of processing and technological advancements."

-

EDREAMS has only selected "technical support" as the sole functionality of the Google Analytics Service:

This circumstance is not relevant when determining whether there has been a violation due to the international transfer of personal data without the necessary guarantees required by the GDPR. What is raised in this procedure is not the object of the service provided by Google for which the data is processed but the international transfer of this data without the appropriate guarantees.

For all the above reasons, this allegation is dismissed.

"THIRD.- ADEQUACY OF THE GUARANTEES FOR THE INTERNATIONAL TRANSFER OF PSEUDONYMIZED IDENTIFIERS"

According to EDREAMS, the international transfer of data of pseudonymized identifiers from Google Ireland to Google LLC within the framework of the Google Analytics Service is lawful and adequate in accordance with the GDPR and the Judgment in the Schrems II case.

In response to this allegation, as expressed in the initiation agreement, while pseudonymization may be a technique for enhancing privacy, the unique identifiers transferred via Google Analytics are specifically intended to select users (Proven Fact Five: "the cookies _ga and _gid are used to distinguish users"), not to act as a technical measure to ensure privacy. Furthermore, it was also explained why the combination of unique identifiers with other elements (such as browser or device data and the IP address) and the possibility of linking such information to a Google account in any case makes a person identifiable. On the other hand, the standard clauses and additional measures adopted by Google LLC were analyzed.

Regarding the standard data protection clauses adopted by the Commission, the very text transcribed by EDREAMS, in the link to a document ***URL.37 compliance/international-transfers) from this Agency states: "However, it remains necessary for the data exporter, where applicable, assisted by the...

C/ Jorge Juan 6
www.aepd.es
28001 - Madrid
sedeagpd.gob.es
53/92

Importer, analyze the impact that the legislation and/or current practices in the importer's country may have on the level of protection provided, so that it is essentially equivalent to that provided by the European framework. Furthermore, the guidelines of the European Data Protection Committee regarding the supplementary measures that are deemed appropriate to ensure that equivalent level of protection must also be taken into account." In the previous section, reference was made to the analysis of the regulations of the United States regarding which the CJEU declared that the transfer of data to the U.S. under the EU-U.S. adequacy decision was invalid due to the possibilities of access by U.S. intelligence services and, on the other hand, concluded that the use of standard contractual clauses cannot, by itself, guarantee a level of protection, as required by Article 44 of the GDPR, since the guarantees they offer are unmet when such access requests are made. As already mentioned in the initiation agreement, "the CJEU considered that the contractual nature of these clauses implied that they could not be binding on the authorities of third countries. In particular, the CJEU stated that: ...Therefore, while there are situations in which, depending on the legislation and practices in the third country in question, the recipient of such transfer is in a position to guarantee the necessary protection of the data solely on the basis of standard contractual clauses for data protection, there are others in which the content of such standard clauses may not constitute a sufficient means to ensure, in practice, the effective protection of the personal data transferred to the third country in question. This is particularly the case when the legislation of that third country allows its public authorities to interfere with the rights of the data subjects to whom the data relates" (C-311/18, paragraph 126, emphasis added).

Regarding the allegations concerning whether Google LLC qualifies as a provider of electronic communications services in the sense of subsection (b) of point 4 of Article 1881 of Title 50 of the United States Code and, therefore, is subject to surveillance by U.S. intelligence services in accordance with subsection (a) of Article 1881 of Title 50 of the United States Code ("FISA 702"), according to the criteria established by the CJEU in its judgment of July 16, 2020 (C-311/18), Google LLC, as the importer of data to the U.S., must be classified as a provider of electronic communications services, and must provide information to the U.S. Government when requested.

The supplementary measures adopted by Google LLC are ineffective to the extent that none of them address the specific issues in this case, which means that none of them prevent the possibilities of access by U.S. intelligence services nor render such accesses ineffective.

Finally, EDREAMS claims compliance with the guarantees established in accordance with Article 46 of the GDPR and according to the steps established by the Recommendations of the EDPB 1/2020 (which in turn reflect the transfer analysis recommendations established by the CJEU in the Judgment of the Schrems II case). From each of the steps listed by EDREAMS, the following cannot be agreed upon:

Step 1: Know the transfers. Regarding the destination of the data sent by Google Analytics, the combination of point 10 of the "Terms of Processing of C/ Jorge Juan 6

www.aepd.es
28001 - Madrid
sedeagpd.gob.es
54/92

"Google Ads Data," whereby the data controller agrees that Google may store and process personal data of the client (i.e., personal data of the claimant and any user who visits the relevant website) in any country where Google maintains facilities, as stated by Google LLC in the document dated April 9, 2021, specifically in the last paragraph of the response to question 8, where it is mentioned that all data collected through Google Analytics is hosted in the United States, constitutes a violation of Article 44 of the GDPR, due to the fact that the data collected on the website "www.edreams.es" through Google Analytics is transferred to the United States. On the other hand, the sending of pseudonymized

unique identifiers, as explained in the initial agreement, has the specific intention of making users identifiable, when previously their individualization was not possible, rather than acting as a technical measure to ensure their privacy. Furthermore, it is also described in the initial agreement why the combination of unique identifiers with other elements (such as browser or device data and the IP address) and the possibility of linking such information to a Google account, in any case, make a person identifiable.

Step 2: Determine the transfer instruments on which it is based. The initial agreement analyzed and reiterates in this document the absence of an Adequacy Decision and the insufficiency of standard data protection clauses to ensure that data subjects have enforceable rights and effective legal actions in this case.

Step 3: Evaluate whether the transfer instrument under Article 46 of the GDPR on which it is based is effective in light of all the circumstances of the transfer. It has been justified how the ruling of the CJEU of July 16, 2020 (C-311/18), classifies Google LLC as a provider of electronic communications services within the meaning of subsection (b) of point 4 of Article 1881 of Title 50 of the United States Code and, therefore, is subject to surveillance by U.S. intelligence services in accordance with subsection (a) of Article 1881 of Title 50 of the United States Code ("FISA 702").

Step 4: Adopt supplementary measures. The initial agreement analyzed the contractual, technical, and organizational measures implemented by Google LLC, concluding that they are not effective insofar as none of them address the specific issues in this case, meaning that none of them prevent the possibilities of access by U.S. intelligence services nor render these accesses ineffective.

Step 5: Stages of the procedure if effective supplementary measures have been determined. The effectiveness of standard data protection clauses to guarantee the rights and freedoms of citizens equivalent in data protection has been ruled out, and no supplementary measure corrects the problem raised by the transfer in question.

Step 6: Reassess at appropriate intervals. The assessments that EDREAMS has conducted regarding the privacy settings and adaptation of cookies.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

55/92

The analytical data does not prevent, as Google LLC points out, that all data collected through Google Analytics is hosted in the United States, which constitutes a violation of Article 44 of the GDPR.

For all the reasons stated, this allegation is dismissed.

"FOURTH.- IN THE ALTERNATIVE TO THE SECOND AND THIRD ALLEGATIONS, LACK OF SUBJECTIVE ELEMENT AS EDREAMS IS NOT THE EXPORTER IN THE INTERNATIONAL TRANSFERS OF PERSONAL DATA."

In this allegation, EDREAMS refers to the lack of the subjective element in the commission of the infringement since, according to EDREAMS, it transfers data to a data processor, and this data processor (Google Ireland) is not located in a third country but within the EU (specifically, Ireland), so there are no international transfers and it does not qualify as an exporter.

This Agency wishes to point out that the responsibility of EDREAMS in the alleged commission of the infringement that motivates this procedure is attributable to the extent that the international transfer of data violates the rights of the claimant and of users visiting the EDREAMS website, as it does not guarantee an equivalent level of protection to that established in the GDPR, and the effectiveness of the obligations established by this regulation must be ensured.

In this regard, Recital 81 of the GDPR clarifies that the data processor must provide sufficient guarantees regarding specialized knowledge, reliability, and resources, with a view to implementing technical and organizational measures that meet the requirements of the Regulation, including the security of processing.

The conditions governing the processing of personal data of the service provided by Google to EDREAMS, "Conditions for the processing of Google Ads data," (hereinafter, "Conditions") at the time of the events that motivated the complaint (August 14, 2020) can be consulted at the following URL

***URL.38, where the figure of the data exporter for international transfers of personal data was established.

In these “Conditions,” reference was made to the standard contractual clauses. These standard contractual clauses, updated on August 12, 2020, and binding on the parties from that date, named Google Ads Data Processing Terms: Model Contract Clauses, Standard Contractual Clauses for Processors, which could be translated as: “Google Ads Data Processing Terms: Model of Contractual Clauses, Standard Contractual Clauses for Processors” (hereinafter, SCCs), were incorporated into the file through the Diligence “doc 8699 2020” (page 5003 of the file), and included the figure of the data exporter. According to these SCCs, EDREAMS, as the data controller, assumed the status of data exporter. Specifically, in the first clause of the SCCs, where the definitions of the concepts are collected, it is provided in its letter (b) (translated from English): “The data exporter means the controller that transfers the personal data.”

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

56/92

On August 16, 2020, the “Conditions for the processing of Google Ads data” were modified.

***URL.39) although the roles of exporter and importer from the previous “Conditions” were maintained:

“2. Definitions:

“Standard Contractual Clauses”: terms that appear in ***URL.40, and which are standard data protection clauses for the transfer of personal data to data processors established in third countries that do not guarantee an adequate level of data protection, as described in Article 46 of the EU GDPR. (...)

10. Data Transfer

10.1 Data storage and processing facilities. The Client agrees that Google, without prejudice to Section 10.2 (Data Transfer), may store and process the Client's personal data in any country where Google or any of its Sub-processors maintain facilities.

10.2 Data Transfer. If the storage and/or processing of the Client's personal data involves transfers of the Client's Personal Data from the EEA, Switzerland, or the United Kingdom to any third country that is not subject to an adequacy decision under European data protection legislation:

(a) It will be considered that the client (as data exporter) has entered into the Standard Contractual Clauses with Google LLC (as data importer);

(b) the transfers will be subject to the Standard Contractual Clauses; and

(c) Google will ensure that Google LLC complies with its obligations under such Standard Contractual Clauses regarding such transfers.”

Subsequently, on September 27, 2021, the “Conditions for the processing of Google Ads data” were substantially modified, as can be verified on the website ***URL.41.

In section 10.3 of these “Conditions,” the Client contracting the service assumes the so-called “Restricted Transfers”:

“10.3 Restricted Transfers. If the processing of the Client's Personal Data involves any type of transfer that is not a Permitted Transfer and such transfers are subject to European Data Protection Legislation (“Restricted Transfers”), then:

(a) If Google announces that it has adopted an Alternative Transfer Solution for any Restricted Transfer, then it will ensure that such Restricted Transfers are carried out in accordance with such Alternative Transfer Solution.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

57/92

(b) If Google has not adopted any Alternative Transfer Solution for any Restricted Transfer, then

(i) If Google's address is in an Adequate Country:

(...)

(ii) If Google's address is not in an Adequate Country:

(A) The SCCs (EU Data Controller to Processor) and/or the SCCs (EU Processor to Processor) will apply, depending on whether the Client is a data controller and/or a data processor, with respect to the Restricted Transfers between the Client and Google that are subject to the EU GDPR and/or the Swiss FDPA.

(...)

The applicable SCCs in this case are the "SCCs (Google Ads and Measurement: Standard Contractual Clauses (Module 3: Processor to Processor)," which can be consulted at the following website:

***URL.42, with GOOGLE IRELAND being designated as the exporter.

Upon reviewing the various amendments to the data processing agreements, it is evident that Google LLC, through its Google Analytics tool, collects data from the EDREAMS website, which will subsequently be transferred in accordance with the provisions set forth in the clauses of the various versions of the analyzed data processing agreements and the SCCs. EDREAMS, by embedding the code of the Google Analytics tool on its website ***URL.15 based on a corporate decision, was aware that personal data is transferred to Google LLC, based in the United States, either directly by EDREAMS or by Google Ireland.

While it is true that EDREAMS does not decide where the personal data is stored by Google LLC, from the moment it contracts the services of its Google Analytics tool, it is understood that, in the contract dated September 27, 2021, it agrees with point 10 of the "Google Ads Data Processing Terms," whereby the data controller has agreed that Google may store and process personal data of the client (i.e., personal data of the claiming party and any user visiting the relevant website) in any country where Google or any of its sub-processors maintain facilities, including the U.S., as stated by Google LLC itself in the document dated April 9, 2021. Thus, the actions of Google LLC are in accordance with what is stipulated and, on behalf of EDREAMS, carry out the processing of the personal data necessary for the proper provision of the service.

Consequently, regardless of the fact that the current SCCs (Google Ads and Measurement: Standard Contractual Clauses (Module 3: Processor to Processor) designate Google Ireland as the data exporter, EDREAMS, as the data controller, assumes, along with the other conditions of the contracting of Google LLC's services, the agreements related to the processing of

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

58/92

data and the SCCs that allow the data to be transferred to Google LLC, based in the United States. Therefore, EDREAMS is responsible for the international data transfer that occurs as a result of the service provided by Google LLC.

This criterion is shared by the European Data Protection Committee (EDPC), which, in compliance with the objective of ensuring the consistent application of the General Data Protection Regulation (as attributed to it by Article 70 of the GDPR), adopted the following guidelines: "Guidelines 05/2021 on the Interplay between the application of Article 3 and the provisions on international transfers as per Chapter V of the GDPR" (unofficial translation: "Directrices 05/2021 sobre la interacción entre la aplicación del artículo 3 y las disposiciones sobre transferencias internacionales con arreglo al capítulo V del RGPD", in which section 19 states the following (official text in English with added underline):

"It is also important to note that Article 44 of the GDPR clearly provides that a transfer can be carried out not only by the data controller but also by the data processor. Therefore, there will be a transfer situation when a data processor (either under Article 3, paragraph 1, or under Article 3, paragraph 2, for a specific processing, as explained above) sends data to another data processor or even to a data controller in a third country following instructions from its data controller. In these cases, the data

processor acts as a data exporter on behalf of the data controller and must ensure that the provisions of Chapter V are complied with for the transfer in question according to the instructions of the data controller, including the use of an appropriate transfer tool. Considering that the transfer is a processing activity carried out on behalf of the data controller, the latter is also responsible and could be liable under Chapter V, and must also ensure that the data processor provides sufficient guarantees under Article 28."

In conclusion, EDREAMS can be attributed with the presumed commission of the infringement subject to this procedure as it is the entity managing the website "www.edreams.es", determining the means and purposes of the collection and processing of the data obtained as a result of the integration of Google Analytics into its website and must be considered the data controller in the sense of Article 4.7 of the GDPR, so that the processing is in accordance with the requirements of the GDPR and guarantees the protection of the rights of the data subject, specifically, in relation to this procedure, in accordance with the provisions of Articles 44 and following of the GDPR.

For all the above reasons, this allegation is dismissed.

"FIFTH.- SUBSIDIARILY TO THE SECOND, THIRD, AND FOURTH ALLEGATIONS, GOOGLE AS DATA CONTROLLER AND NOT MERE PROCESSOR"

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

59/92

EDREAMS' allegations on this point focus on considering that the data transfer subject to this procedure "could be due to the user starting their Google account, an element that is under the full and absolute control of Google and for which Google is responsible for processing the data."

In response to this argument, it must be specified that it is recorded in the file (page 4764) that a diligence was carried out on 4/03/2021 by the Inspector who conducted the preliminary investigation proceedings, in which, without being logged in, personal data referred to in point 2, "On the qualification of the data subject to processing as personal data," of Legal Basis IV of this document, was also sent. Consequently, the data transfer cannot be linked to the user starting their Google account; rather, this transfer occurs merely by browsing the EDREAMS website even without having logged into a Google account.

For all the above reasons, this allegation is dismissed.

"SIXTH.- LACK OF GUILT OF EDREAMS AND COOPERATIVE ATTITUDE"

Regarding this allegation, it should be noted that the main issue raised in this section is a consequence of the reasoning presented by EDREAMS in the previous allegation, and it reiterates the ideas expressed earlier:

- EDREAMS claims that Google Ireland is the data exporter, to which a response has already been provided in the fifth allegation.
- EDREAMS has installed Google Analytics with the most respectful configuration for the protection of personal data, which has been analyzed in the response to the first preliminary allegation and in the second allegation.

The subjective element in the commission of the administrative offense for the violation of Article 44 of the GDPR does not exclude the responsibility of EDREAMS. The Supreme Court in its ruling STS No. 196/2020, of February 15, 2021 (rec. 1916/2020) excludes objective responsibility in the commission of offenses but makes the following clarification regarding the subjective element of administrative responsibility: "It simply happens that, as direct responsibility of legal entities is admitted in our Administrative Law, which therefore recognizes their capacity to commit offenses, the subjective element of the infringement is manifested in these cases differently than it is for natural persons, so that, as pointed out by the constitutional doctrine we have previously mentioned - STC 246/1991, of December 19 (F.J. 2) and 129/2003, of June 30 (F.J. 8) - the direct reproachability derives from the legal good protected by the norm that is infringed and the necessity for that protection to be genuinely effective and for the risk that, consequently, the legal entity subject to compliance with that norm must assume."

In the facts that are the subject of the claim and that have motivated the initiation of this procedure, such circumstances occur. On one hand, there exists a protected legal good, the personal data of the claimant and all users.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

60/92

visitors to the EDREAMS website, for whom a level of protection equivalent to that established by the GDPR is not guaranteed, due to being subject to international transfer to the U.S., and, on the other hand, the necessity for such protection to be effective, especially given EDREAMS's knowledge of the current legal framework, the jurisprudence of the CJEU, and the clauses of the Google Analytics contract, as explained in the initiation agreement of this procedure and in the response to the third allegation.

For all the above reasons, this allegation is dismissed.

“SEVENTH.- DEFENSELESSNESS IN THE PROCEDURE OF ARTICLE 60 GDPR”

Regarding this allegation, it should be noted that EDREAMS largely repeats the allegations included in the FIRST allegation, so we refer to the response already provided to this allegation. More specifically, concerning the following aspects related to the processing of the procedure of Article 60 of the GDPR, it should be noted that:

1.- In the processing of the procedure of Article 60 of the GDPR, the AEPD only has to formally inform the interested party of the adoption of the draft agreement to initiate sanctioning proceedings for the purposes provided in Article 75 of this Organic Law, as stipulated in Article 64.2, third paragraph of the LOPDGDD in the wording in force at the time the draft decision was signed.

2.- Regarding the meetings held within the TF-101, this is a working group created solely to share the viewpoints of various data protection authorities regarding claims with a similar basis, without any type of attribution. In any case, in the Diligence “doc TF101” incorporated into the file, EDREAMS has had access to the documentation resulting from the work undertaken by the TF-101 working group.

3.- Article 60 of the GDPR establishes a cooperation procedure between the main supervisory authority and other interested authorities, without in any way requiring the participation of the interested parties in the procedure, which is regulated by the national legislation of each Member State. Once what Article 60 of the GDPR calls a “draft decision” is agreed upon, the corresponding procedure is processed with all procedural guarantees, as EDREAMS's participation in the processing of this procedure adheres to the provisions of the LOPDGDD and the LPACAP, ensuring, in any case, the possibility of submitting allegations to the initiation agreement and the hearing procedure for the interested party once the procedure is instructed.

4.- EDREAMS's right to submit allegations and use the means of defense permitted by the Legal System is not violated because this Agency is linked with the other interested authorities by the adopted draft decision, which establishes the terms of the initiation agreement, as this linkage does not prevent EDREAMS's allegations from being accepted in whole or in part, in which case a new draft decision would be presented to the opinion of the other interested authorities.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

61/92

For all the above reasons, the present allegation is dismissed.

“OCTAVA.- LACK OF MOTIVATION IN THE DRAFT DECISION AND INITIATION AGREEMENT”

In response to this allegation, it should be noted that in this section EDREAMS repeats some of the arguments made in the previous sections, such as that international transfers are carried out by Google Ireland (fourth allegation), that EDREAMS has adopted contractual, technical, and organizational measures (preliminary allegation, section 1), or the legal framework in the U.S. (preliminary allegation, section 2).

From the proven facts in this procedure, it has been established that the contractual, technical, and organizational measures implemented by EDREAMS regarding its privacy configuration have not prevented the international transfer of data by Google, as acknowledged by the data processor itself, for the purpose of providing the service contracted by EDREAMS.

Regarding the lack of motivation of the initiation agreement alleged by EDREAMS, Article 68.1 of the LOPDGDD establishes what the content of the initiation agreement must be, "which will specify the facts, the identification of the person or entity against whom the procedure is directed, the infringement that may have been committed, and its possible sanction." In its 57 pages, the facts subject to this procedure and the actions carried out by this Agency to verify their truthfulness are described. The entity against which the procedure is directed is determined, in this case, the data controller, EDREAMS. From page 41 of the initiation agreement, 16 pages are dedicated to motivating the infringement that has allegedly been committed, and finally, the exercise of the corrective power that is proposed. For all these reasons, both in the preliminary investigative actions and in the initiation agreement and in the proposed resolution, the genuine reasons that motivated the initiation of this procedure are recorded, which allow EDREAMS to formulate allegations, as it has effectively done. According to EDREAMS, the Google Analytics service was contracted in order to measure and improve the performance of the website ***URL.1 and to detect possible problems and improvements (page 1 of the document submitted by EDREAMS on December 10, 2020), "We chose Google Analytics from among not many alternatives, due to its ease of implementation and features versus the competition." EDREAMS was aware of the current legal framework regarding data transfers to the U.S., the Judgment of the CJEU in the Schrems II case, in which the Court considered that regulatory surveillance programs such as Article 702 of FISA and E.O. 12333 in conjunction with PPD-28 do not meet the minimum requirements established by Union Law regarding the principle of proportionality, so that surveillance programs based on these provisions cannot be considered limited to what is strictly necessary (C-311/18, paragraph 184), and despite this, EDREAMS maintained the Google Analytics service.

C/ Jorge Juan 6
www.aepd.es
28001 - Madrid
sedeagpd.gob.es
62/92

In light of the detailed analysis required by EDREAMS and the constitutional doctrine referred to in its written allegations, it should be noted that all the allegations presented have received a sufficiently reasoned response. On the other hand, the Constitutional Court stated in STC June 16, 1982 (RTC 1982, 36) "that a brief or succinct reasoning, if sufficiently indicative, does not equate to a lack of reasoning nor does it entail its nullity." In the same vein, the Supreme Court established (STS January 30, 2001 [RJ 2001, 1147]) that "The reasoning must be sufficiently indicative, which means that its extent will depend on the greater or lesser complexity of what is questioned or the greater or lesser difficulty of the reasoning required, which implies that it may be succinct or brief, without the need for extensive considerations, when they are not necessary given the simplicity of the issue raised and resolved."

Jurisprudence employs a very flexible criterion and allows this reasoning to be provided, either directly or by reference to reports or opinions present in the proceedings (STS January 21, 2003 [RJ 2003, 893]), through the incorporation of the proposed resolution (STS November 10, 1993 [RJ 1993, 8201]), or resulting from the same administrative file (STS July 29, 2002 [RJ 2002, 7385]). This is known as "in aliunde" reasoning.

For all the above reasons, the present allegation is dismissed.

"NINTH.- LACK OF PROPORTIONALITY IN THE SANCTION AND UNLAWFUL EFFECTS"

According to EDREAMS, the sanction proposed in the Initiation Agreement is not proportional considering that it is Google Ireland that carries out the international data transfers, over which it has no decision-making power.

In response to this allegation, it should be noted that EDREAMS has not acted diligently in that it has expressly stated that it was aware of both the jurisprudence of the CJEU regarding Google Analytics

and the subsequent decisions of other data protection authorities in the European Union, at least those of Austria, France, and Italy (preliminary allegation, second paragraph), regarding the illegality of the use of Google Analytics. Therefore, far from correcting the effects of its actions, it has maintained them over time. The allegations that international transfers are not a decision of EDREAMS, but are carried out by Google Ireland, have already been addressed in the fourth allegation.

One cannot speak of a lack of proportionality of the sanction when, according to the circumstances present in this case, the imposition of a fine for the violation of Article 44 of the GDPR has not been proposed. This Agency only makes use of the corrective power of Article 58.2.j) of the GDPR to ensure compliance with the legality provided for in the GDPR, as interpreted by the applicable jurisprudence of the CJEU in this case.

For all the above reasons, the present allegation is dismissed.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

63/92

"TENTH.- SUBSIDIARILY TO ALL THE PREVIOUS ALLEGATIONS - THE SUSPENSION OF THE PROCEDURE IS APPROPRIATE"

In response to this allegation, it should be noted that EDREAMS requests the suspension of the procedure based on Article 22.1.c) of the LPACAP, citing as the reason the procedure opened by the Commission for the adoption of an Adequacy Decision, given that the draft Adequacy Decision of the European Commission was published on December 13, 2022. Article 22.1.c) of the LPACAP states that "When there is an unfinished procedure in the European Union that directly conditions the content of the resolution in question, from the moment its existence is known, which must be communicated to the interested parties, until it is resolved, which must also be notified." This is a case of discretionary suspension ("may be suspended"), which should not be applied in light of the infringement of Union law that occurs through the international transfer of data subject to the claim, considering the current legal framework and the rulings of the CJEU, without taking into account the new regulatory framework in the U.S. and the draft adequacy decision published by the Commission for the reasons already argued in the response to the preliminary allegation (section 2) and to the third allegation.

If the suspension were granted, EDREAMS would continue to carry out international data transfers without the guarantees required in the Schrems II case. For a transfer such as that mentioned in the claim to have a level of protection for individuals equivalent to that guaranteed by the GDPR, an adequacy decision must be adopted by the Commission. The adequacy decision must be adopted through an implementing act, which requires the processing established in Article 45.3 of the GDPR, which refers to Article 93.2 of that regulation, which in turn refers to Article 5 of Regulation (EU) No. 182/2011, which establishes an examination procedure as one of the modalities of control by the Member States over the exercise of the Commission's implementing powers. Through this entire procedure, the aim is to ensure the accuracy of the text that will ultimately be approved, so that the mere drafting of a draft by the Commission only marks the beginning of the processing of an adequacy decision, whose adoption requires further steps for its approval. It should be noted in this case that Commission Decision 2016/1250, which declared the adequate level of protection of the Privacy Shield framework for international data transfers to the U.S., was annulled in the Schrems II case. This Decision in turn replaced "Safe Harbor," which was also declared invalid by the CJEU in October 2015. Regarding the need for consistency in the application of the GDPR throughout the European Union, as stated by EDREAMS in its allegations (preliminary allegations, second section), it should be noted that several data protection authorities have issued decisions with criteria similar to those presented in this act. Thus, the following data protection authorities, among others, have considered that international data transfers to the U.S., carried out through the Google Analytics tool, lack the guarantees required by Article 44 of the GDPR:

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

- 1) Austria ***URL.43.
- 2) France ***URL.44.
- 3) Italy ***URL.45.

In conclusion, the arguments presented by this Agency largely coincide with the grounds of the decisions adopted by other data protection authorities from other Member States of the European Union, which have imposed on the data controller the suspension of the international data transfer to Google LLC while the data processing activity of the Google Analytics service does not comply with the provisions of Articles 44 and following of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

For all the above reasons, this allegation is dismissed.

B) In relation to the allegations made regarding the proposed resolution of this sanctioning procedure, we proceed to respond to them in the order presented by EDREAMS:

1.- "FIRST PRELIMINARY ALLEGATION. - Approval and validity of the European Commission's decision on the adequacy of data transfers under the EU-U.S. privacy framework."

EDREAMS notes in this point that on July 10, 2023, the European Commission approved the Implementing Decision on the adequate level of data protection under the EU-U.S. data privacy framework (the "Adequacy Decision"), and the substantial change that the U.S. legal framework has undergone. This allegation must be dismissed as only the international transfers that occur after this date may be covered by the decision.

2.- "SECOND PRELIMINARY ALLEGATION. - Executive summary of the allegations in this document."

In this preliminary allegation, EDREAMS provides a brief summary of the reasons for opposing the proposed resolution issued in this procedure, which are developed more extensively in the following sections.

In the following sections, the various arguments that EDREAMS briefly describes in this allegation will be addressed.

For all the above reasons, this allegation is dismissed.

3.- "FIRST. - The burden of proof lies with the AEPD. Violation of the presumption of innocence."

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

EDREAMS considers that it has not been established that international data transfers occur in the present case, nor has it been proven that there is a risk to the rights and freedoms of the data subjects. Both in the initiation agreement and in the proposed resolution, it was justified why this Agency believes that international data transfers to the U.S. occur, a fact acknowledged by Google. Thus, in the proposed resolution, it was stated: "Regarding the destination of the data sent by Google Analytics, the combination of point 10 of the 'Google Ads Data Processing Terms', by which the data controller agrees that Google may store and process personal data of the client (i.e., personal data of the complainant and any user visiting the relevant website) in any country where Google maintains facilities, with what Google LLC stated in the document dated April 9, 2021, specifically in the last paragraph in response to question 8, where it is said that all data collected through Google Analytics is hosted in the United States."

As for the issue of whether the risk to the rights and freedoms of the data subjects has been proven, this fact is evident from the moment Google LLC is considered a provider of electronic communication services in the sense of subsection (b) of point 4 of Article 1881 of Title 50 of the United States Code and, therefore, is subject to surveillance by U.S. intelligence services in accordance with subsection (a) of Article 1881 of Title 50 of the United States Code ("FISA 702"), according to the criteria established by the CJEU in its judgment of July 16, 2020 (C-311/18). In this judgment, the CJEU

declared the Commission Decision 2016/1250 invalid precisely because, according to the reasoning just outlined, international data transfers to the U.S. do not guarantee an adequate level of protection for personal data transferred from the Union: "Consequently, by stating in Article 1, paragraph 1, of the EP Decision that the United States ensures an adequate level of protection for personal data transferred from the Union to entities established in that third country under the EU-U.S. Privacy Shield, the Commission did not take into account the requirements resulting from Article 45, paragraph 1, of the GDPR, interpreted in light of Articles 7, 8, and 47 of the Charter" (paragraph 198 of case C-311/18).

Regarding the applicable legal framework for international data transfers, it must be reaffirmed that the regulatory change that has occurred in the U.S. after the events in question cannot be applied to the present procedure. Furthermore, EDREAMS' interpretation of the new U.S. data protection regulations does not, by itself, determine the legality of the international data transfer. This Agency fully applies the doctrine established by the Court of Justice of the European Union in the judgment of the Schrems II case, which invalidated the decision on the "EU-U.S. Privacy Shield," since, although it is true that an adequacy decision has been adopted by the European Commission, pursuant to Article 45 of the GDPR, regarding the new legal framework for data protection in the U.S., even taking into account the new adequacy decision adopted by the Commission on July 10, 2023, it cannot be automatically concluded that all international data transfers to the U.S. are compliant with the GDPR, as will be further justified in the following sections.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

66/92

Response to its seventh allegation "Adequacy of guarantees for international transfers in relation to the substantial regulatory change in the U.S.". It also does not legalize the previous transfers.

For all the above reasons, this allegation is dismissed.

4.- SECOND. - Defenselessness. Violation of the right to defense.

According to EDREAMS, this Agency has impeded the normal exercise of EDREAMS' right to defense by the unjustified delay in access to the file, the unjustified limitation of the extension deadlines for submitting allegations, and recently, the notification of the Proposal for Resolution without having provided the appropriate evidentiary procedure, without any motivation, and despite having been expressly requested by EDREAMS.

Next, we proceed to respond to the arguments put forward by EDREAMS. Regarding the unjustified delay in access to the file, due to the technical impossibility of making it available to EDREAMS through the electronic headquarters because of the size of the document, it was decided to send a copy of the file in electronic format via courier. It was the intention of this Agency that EDREAMS have access to the copy of the file as soon as possible, for which the staff responsible for its dispatch confirmed by phone the address to which it should be sent with personnel from EDREAMS who, at that time, was listed in this Agency's database, to whom the shipment was sent on December 12, 2022.

Despite the aforementioned verification, as recorded in the receipt issued by the courier company in the file, on December 13, 2022, when there were still 6 business days remaining until the deadline for submitting allegations, the courier was unable to deliver the shipment for the following reason:

"Unknown recipient at the delivery address." After this first delivery attempt, contact was made again with EDREAMS to confirm the address.

Therefore, the delay in the delivery of the copy of the file is due to EDREAMS not having notified this Agency of the change of address.

On December 15, 2022, personnel from EDREAMS appeared before this Agency, when there were four business days left until the final day for submitting allegations. This representation of EDREAMS was provided with the copy of the file in person, and it could not be provided two days earlier when they appeared before this Agency without proving such representation. Undoubtedly, the lack of diligence on the part of EDREAMS personnel, who appear in their name without proving the

representation to act on behalf of those they claim to represent, was also a cause of the delay in the delivery of the copy of the file.

In any case, since December 15, 2022, the day on which the copy of the file was delivered, EDREAMS has had a sufficiently ample period to review the documents in the file; proof of this, by way of example, is the expert report attached to its allegations (attached document No. 3), where technical issues of some of the documents in the file are analyzed over 134 pages.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

67/92

On the other hand, regarding what EDREAMS refers to as "unjustified limitation" of the deadlines for submitting allegations, Article 32.1 of the LPACAP states that "The Administration, unless otherwise provided, may grant... an extension of the established deadlines...", therefore it is not obliged to do so." In the present case, the deadline for allegations regarding the initiation agreement was extended by five working days, the maximum period allowed by Article 32.1 of the LPACAP, considering that the initial period was ten working days, and an additional two working days were granted for the allegations to the proposed resolution, thus ensuring that EDREAMS has more than sufficient time to present allegations.

Regarding the rejection of the evidence request made by EDREAMS, it is not deemed necessary to conduct a technical test of a fact that has been acknowledged by Google, which is that, ultimately, all data processed by Google Analytics is hosted in the U.S. According to the provisions of Article 77.3 of the LPACAP, "the instructor of the procedure may only reject the evidence proposed by the interested parties when they are manifestly inappropriate or unnecessary, through a reasoned resolution." For all the above reasons, this allegation is dismissed.

5.- THIRD. - Lack of motivation of the Initiation Agreement and the Proposal for Resolution.

According to EDREAMS, contractual, technical, and organizational measures implemented directly by EDREAMS have not been evaluated, without EDREAMS having any room for negotiation with Google Ireland, and again, the arguments regarding new circumstances of U.S. regulations are repeated. In response to this allegation, it should be noted that the proven facts of this procedure have established that the contractual, technical, and organizational measures implemented by EDREAMS regarding its privacy configuration have not prevented the international transfer of data by Google, as acknowledged by the data processor itself, for the purpose of providing the service contracted by EDREAMS.

The lack of motivation of the initiation agreement alleged by EDREAMS contrasts with the content of that act, issued in accordance with the provisions of Article 68.1 of the LOPDGDD, which establishes regarding its content: "that the facts will be specified, the identification of the person or entity against whom the procedure is directed, the infringement that may have been committed, and its possible sanction." Indeed, in the 57 pages of the initiation agreement, the facts subject to this procedure and the actions carried out by this Agency to verify their truthfulness are described. The entity against which the procedure is directed is identified, in this case, the data controller, EDREAMS. From page 41 of the initiation agreement, 16 pages are dedicated to motivating the infringement that has allegedly been committed, and finally, the exercise of the corrective power that is proposed.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

68/92

Subsequently, in the resolution proposal, pages 55 to 73 are dedicated to responding to the allegations presented regarding the initiation agreement, making it difficult to claim a lack of motivation. More specifically, regarding the lack of motivation concerning the contractual, technical, and organizational measures implemented by EDREAMS, despite the assertion that it uses Google

Analytics with "the most privacy-respecting configuration for users," deactivating the Google Signals functionality at the end of 2020 for all its websites, which, according to EDREAMS, prevents the identification of users by any Google company, this Agency, according to the prior investigation actions dated February 17, 2021, and March 4, 2021, was able to verify that this configuration of Google Analytics does not prevent the sending of the data referred to in point 2, "On the qualification of the data subject to processing as personal data," of Legal Basis IV of this resolution.

According to EDREAMS, it had no room for negotiation with Google Ireland beyond applying a restrictive privacy configuration given the ruling of the CJEU in the Schrems case. EDREAMS was aware of the current legal framework regarding data transfer to the U.S. established by the CJEU Judgment in the Schrems II case, in which the Court considered that regulatory surveillance programs such as Section 702 of FISA and E.O. 12333 in conjunction with PPD-28 do not meet the minimum requirements established by Union Law regarding the principle of proportionality, so that surveillance programs based on these provisions cannot be considered limited to what is strictly necessary (C-311/18, paragraph 184), and nevertheless, it maintained the Google Analytics service. Therefore, as the data controller, EDREAMS is responsible for the international data transfer that occurs as a result of the service provided by Google, and it can be attributed to EDREAMS the alleged commission of the infringement subject to this procedure since it is the one managing the website

"www.edreams.es," determining the means and purposes of the collection and processing of the data obtained as a result of the integration of Google Analytics into its website and must be considered the data controller in the sense of Article 4.7 of the GDPR, so that the processing is in accordance with the requirements of the GDPR and guarantees the protection of the rights of the data subject, specifically, in relation to this procedure, in accordance with the provisions of Article 44 and subsequent articles of the GDPR.

Finally, this Agency fully applies the doctrine established by the Court of Justice of the European Union in the judgment of the Schrems II case, which invalidated the decision on the "EU-US Privacy Shield," since, although it is true that an adequacy decision has been adopted by the European Commission, pursuant to Article 45 of the GDPR, regarding the new legal framework on data protection in the U.S., even taking into account the new adequacy decision adopted by the Commission on July 10, 2023, it cannot be automatically concluded that all international data transfers to the U.S. are in accordance with the GDPR, as will be justified more extensively in the response to its seventh allegation

"Adequacy of the guarantees for international transfers in relation to the substantial regulatory change in the U.S."

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

69/92

For all the above reasons, the present allegation is dismissed.

6.- FOURTH. - Procedural Issues in the Processing of the Procedure under Article 60 GDPR. Violation of the Procedure under Article 60. Denial of Defense.

According to EDREAMS, there has been a violation of Article 60 of the GDPR due to the lack of identity of the inquiry made with the essential circumstances of the present procedure, as well as in the processing of said procedure.

Regarding this allegation, although EDREAMS claims that "the procedure under Article 60 GDPR has been substantially violated in the present procedure because the Draft Decision sent to the interested supervisory authorities did not contain any reference to the currently applicable regulations in the U.S.," the regulatory change that took place in the U.S. after the events in question cannot be applied to the present procedure. Furthermore, EDREAMS's interpretation of the new U.S. data protection regulations does not, by itself, determine the legality of the international data transfer, nor does the current legal framework imply that all international data transfers to the U.S. are compliant with the GDPR.

For all these reasons, it is not appropriate for the other data protection authorities of the Member States of the EU to have been consulted in this regard. Although the adoption by the Commission of

the draft adequacy decision (December 13, 2022) was subsequent to the consultation of the draft decision, the new U.S. data protection regulations were indeed prior to the consultation of the draft decision, with none of the authorities making comments or objections to the draft decision initiating the sanctioning procedure in the sense that EDREAMS states in its allegations, regarding the assessment of the impact of the new regulatory framework on data protection in the U.S. Furthermore, Article 61 of the GDPR would have allowed these authorities to formulate a consultation on this matter.

On the other hand, regarding the “violation of EDREAMS's right to defense in the processing of the procedure under Article 60 GDPR” referred to by EDREAMS in its written allegations, it is important to highlight that:

1.- Article 60 of the GDPR establishes a cooperation procedure between the main supervisory authority and the other interested authorities, without, in any way, providing for the participation of the interested parties in the procedure, which is regulated by the national legislation of each Member State. Once what Article 60 of the GDPR calls the “draft decision” is agreed upon, the corresponding procedure is processed with all procedural guarantees, as EDREAMS's participation in the processing of this procedure adheres to the provisions of the LOPDGDD and the LPACAP, ensuring, in any case, the possibility of submitting allegations to the initiation agreement and the hearing procedure for the interested party once the procedure has been instructed.

In the processing of the procedure under Article 60 of the GDPR, the AEPD only has to formally notify the interested party of the adoption of the draft initiation agreement for the sanctioning procedure for the purposes provided in Article 75 of this.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

70/92

Organic Law, as provided in Article 64.2, third paragraph of the LOPDGDD in the wording in force at the time of signing the draft decision.

It is not true that EDREAMS was unaware of the communications from other authorities regarding the consultation of the draft decision under the procedure of Article 60 of the GDPR; it literally states: “nor have the opinions or objections that the interested supervisory authorities may have made been communicated to it.” On page 5497, you can see a report of the consultation carried out with the other authorities, and, more specifically, on page 5501, a comment made by the Irish authority, asking about the possibility of sharing a revised draft decision at the end of the procedure. No other type of observation was made by the other interested authorities.

2.- The working group called TF-101 is not an administrative body; it does not have decision-making or deliberative powers; it is simply a working group created solely to share the viewpoints of various data protection authorities regarding claims with a similar basis, without any type of attributions. In any case, in the diligence “doc TF101” included in the file, EDREAMS has had access to the documentation resulting from the work undertaken by the TF-101 working group.

3.- EDREAMS's right to make allegations and use the means of defense permitted by the Legal System is not violated because this Agency is linked to the other interested authorities regarding the adopted draft decision, in which the terms of the initiation agreement are established, since such linkage does not prevent EDREAMS's allegations from being accepted in whole or in part, in which case a new draft decision would be submitted for consultation to the other interested authorities. Furthermore, due to the very configuration of the procedure provided in Article 60 of the GDPR, which stipulates that the draft decision may be reviewed if an interested authority raises a pertinent and reasoned objection, it would not make sense for the interested party to present allegations to a document that is not definitive and that does not form part of the national sanctioning procedure, through which the powers conferred in Article 58 of the GDPR are exercised. Once the draft decision has been adopted and the initiation agreement of the national procedure has been issued, EDREAMS has been able to utilize all the guarantees provided in the administrative legal system for its defense. For all the above reasons, this allegation is dismissed.

7.- FIFTH. - Essential errors in the evidentiary proceedings carried out by the AEPD contained in the

file.

According to EDREAMS, there are various essential errors in the evidentiary proceedings carried out by the AEPD and in the conclusions drawn from them by the AEPD. It states that Google does not link information about the visit to the website Edreams.es with the user's Google account; that in cases where the user had logged into Gmail prior to visiting the website ***URL.15 (including the case where the session was initiated and closed prior to browsing), contrary to what...

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

71/92

reflected by the AEPD, the values of the cookies _ga/_gid and the parameters cid/_gid change in each of the tests conducted; and that in its checks, Google has not linked any information regarding the pages visited within the website ***URL.15 nor the actions performed within that website to the Google account with which the user was logged in. Regarding such claims, it should be noted that EDREAMS has not explained why the fact that Google Signals is not activated makes it impossible for Google to link the information to the user's account, nor has it clarified why changing the values of the cookies _ga/_gid and the parameters cid/_gid means that they can no longer be used to associate the collected data with the user's Google account, considering that Google is aware of each of those values; and that, in the expert report presented by EDREAMS, it is not denied that when Google Advertising Services cookies are accepted, the conditions are met for the association to occur. Ultimately, these statements must be rejected as they do not undermine the fact that through the use of the Google Analytics cookie, information is transferred to the U.S. that allows individuals to be identified.

8.- SIXTH. - Given the privacy configuration selected by EDREAMS in Google Analytics, no international transfers of personal data occur. According to EDREAMS, it chose the Google Analytics configuration that is most respectful of users' privacy from the options provided by Google. In response to this allegation, in which EDREAMS claims that "the AEPD intends to attribute to Google the capacity for identification merely because it may reasonably use means of singularization, means that are undefined and unidentified by the AEPD in the Proposal for Resolution," it is necessary to bring to attention what is stated in the Proven Fact Forty-Third. In the proceedings conducted on March 24 and 25, 2022, regarding the description of the operation of Google Analytics available at the URLs ***URL.46 and ***URL.47, it is literally stated, both for the cookie _ga and the cookie _gid, that each one "is used to distinguish users." Therefore, it is Google itself that claims that the cookies are used to identify users.

EDREAMS questions that this Agency attributes to Google the possibility of identifying users, stating, "The mere possibility that Google could have at its disposal 'means of singularization' (which, moreover, Google confirms it does not have) cannot be sufficient for the AEPD to assert that Google has the capacity for re-identification." Indeed, as already mentioned in the initiation agreement, Recital 30 of the GDPR states that: "Natural persons can be associated with online identifiers provided by their devices, applications, tools, and protocols, such as internet protocol addresses, session identifiers in the form of 'cookies' or other identifiers, such as radio frequency identification tags. This can leave traces that, in particular, when combined with unique identifiers and other data received by servers, can be used to create profiles of natural persons and identify them."

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

72/92

The proven facts referred to above, based on Google's own assertion that the cookies _ga and _gid are used to distinguish users, along with the provisions of Recital 30 of the GDPR, are sufficient arguments to understand that the mere possibility of identifying users of the EDREAMS website implies that these are personal data, as confirmed by Recital 26 of the GDPR: "The principles of data

protection must apply to all information concerning an identified or identifiable natural person. Pseudonymized personal data, which could be attributed to a natural person by the use of additional information, should be considered information about an identifiable natural person. To determine whether a natural person is identifiable, all means reasonably likely to be used by the data controller or any other person to identify the natural person, directly or indirectly, must be taken into account.” Furthermore, in the document dated April 9, 2021, that GOOGLE LLC sent to the Austrian data protection authority, which shares it with the other authorities through the TF-101 Working Group, GOOGLE LLC responds to a series of questions posed by the Austrian authority regarding a claim substantially similar to the present procedure, and to which EDREAMS has had access as it is included in the file; in point number 9 (page 5234 of the file), the following is stated: (unofficial translation):

“In the present claim, the claimant was logged into their Google account when visiting the specific website of the site owner. Does the implementation of Google services (including Google Analytics) allow Google to receive information that a certain user of a Google account has visited a specific website? If so, please describe how and what information about the Google account user is collected. No, the implementation of Google Analytics as such does not allow Google to receive the information that a certain Google user has visited a specific website. The implementation of Google Analytics on a website allows Google to receive information that a certain Google user has visited a specific website only if the following additional conditions are met:

(1) The user has activated Internet activity and in their Google account and, furthermore, has visited the website;

(2) The user has opted to include the activity of companies that use Google services;

(3) The user has activated ad personalization;

(4) and the user is logged into their Google account in the same browser while visiting the website.

If Google Signals (see our response to question 6(ii)) is activated on that website, Google will then be able to link the user's visit to that website with the activity of the Google account on the user's Internet and applications.”

As can be seen, again from Google's own response, it is not necessary to have Google Signals activated for Google to receive information from a user.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

73/92

Google user if the four transcribed conditions are met, being an optional function whose deactivation does not prevent Google from receiving information that a specific user of a Google account has visited a particular website. In response 6 (ii), Google states: “Google Signals is an optional feature of Google Analytics that, when activated, adds supplementary reports based on data from Google users who have enabled ad personalization in their account.”

Therefore, it is not true, as EDREAMS claims in its allegations, that “When the Google Signals functionality is disabled, it is technically impossible for any Google company to link the data collected by Google Analytics to the Google account.”

On the other hand, EDREAMS asserts regarding the collection of IP Addresses: “IP addresses would be anonymized at the time of collection and such anonymization, as confirmed by Google, occurs within the European region for users browsing from the EEA. Consequently, the data that could potentially be transferred to the U.S. are not personal data, but have undergone a solid and irreversible anonymization process.” Neither Google nor EDREAMS has credibly demonstrated that the IPs are anonymized within the territory of the European Union.

We can accept Google's assertions that IPs are anonymized within the territory of the EU, just as we have previously reproduced how they handle cookies and their use to distinguish users, but they could be subject to processing once collected. For example, in Google Analytics, according to the document “Privacy and Data in the EU” from Google (available at ***URL.48), “...IP address data is used solely to obtain geolocation data and is immediately discarded,” so information that may be provided by the

IP is indeed used before anonymization. EDREAMS presents as evidence that IPs are always anonymized in the territory of the European Union an email from a Google employee, thus there is no technical evidence to support it.

Consequently, in accordance with what has been more extensively developed in Legal Basis IV, particularly in its point 2, "On the qualification of the data subject to processing as personal data," the data transferred by EDREAMS through the tool provided by Google is considered personal data. For all the reasons stated, this allegation is dismissed.

9.- SEVENTH. - Adequacy of the guarantees for international transfers in relation to the substantial regulatory change in the U.S.

According to EDREAMS, the facts and legal analysis of the CJEU in the judgment of the Schrems II case on which the AEPD argues that the adopted transfer instruments do not guarantee an adequate level are outdated, as they do not take into account the current regulatory regime applicable to the U.S. Likewise, since the approval

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

74/92

of the Adequacy Decision, the importer would be covered by Article 45 GDPR.

In response to this allegation, the modification of the regulatory framework regarding data protection that has occurred in the U.S. cannot be applied to the present procedure, which, moreover, took place after the events in question. The interpretation made by EDREAMS regarding the U.S. regulations described in its allegations does not, by itself, determine the legality of the international data transfer. Despite the new adequacy decision approved by the Commission on July 10, 2023, this Agency fully considers the doctrine established by the Court of Justice of the European Union in the ruling of the Schrems II case, which invalidated the decision on the "EU-US Privacy Shield," since the new adequacy decision, adopted in accordance with Article 45 of the GDPR, does not imply that any international data transfer to the U.S. is compliant with the GDPR if certain requirements are not met. To ensure that an international data transfer complies with the GDPR, the Commission's implementing decision dated July 10, 2023, in accordance with Regulation (EU) 2016/679 of the European Parliament and of the Council on the adequate level of protection of personal data in the "EU-U.S. Data Privacy Framework," establishes in its Annex I, "Principles of the EU-U.S. Data Privacy Framework issued by the U.S. Department of Commerce" the following (unofficial translation):
"2.

In order to rely on the EU-U.S. Data Privacy Framework to make transfers of personal data from the EU, an organization must self-certify its adherence to the Principles to the Department (or its designated person). While organizations' decisions to enter the EU-U.S. Privacy Framework are entirely voluntary, effective compliance is mandatory: organizations that self-certify to the Department and publicly declare their commitment to adhere to the Principles must fully comply with the Principles...

3. ... The benefits of the EU-U.S. Privacy Framework are assured from the date the Department places the organization on the Data Privacy Framework List."

Consequently, for the effective application of the adequacy decision, a series of requirements must be met to ensure compliance with the "Principles of the EU-U.S. Data Privacy Framework."

For all the above reasons, this allegation is dismissed.

10.- EIGHTH. - In the alternative to the sixth and seventh allegations, lack of subjective element since EDREAMS is not an exporter in the international transfers of personal data.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

75/92

In this allegation, EDREAMS maintains that, in the present procedure, Google Ireland is the exporter of the data, being also one of the entities against which the claim was directed.

This reasoning must be rejected. The responsibility of EDREAMS in the alleged commission of the infringement that motivates this procedure is attributable insofar as, as the data controller, the international transfer of data violates the rights of the claiming party and of users visiting the EDREAMS website, by not guaranteeing an equivalent level of protection to that established in the GDPR, and the effectiveness of the obligations established by this regulation must be ensured.

Examined in the proposed resolution are the various versions of the agreements between EDREAMS and Google regarding data processing, it is evident that Google LLC, through its Google Analytics tool, collects data from the EDREAMS website, which will subsequently be transferred to the U.S., and that EDREAMS, by introducing the code of the Google Analytics tool on its website ***URL.1 based on a corporate decision, was aware that personal data is transferred to Google LLC, based in the United States, either directly by EDREAMS or by Google Ireland.

Specifically, EDREAMS states that: "It is entirely inconsistent for the AEPD to argue that there is an international transfer susceptible to a cease order between EDREAMS and Google LLC, when such a relationship does not exist (or in its case is of a past contractual relationship) since currently the entity with which EDREAMS has a contractual relationship is Google Ireland, as regulated in the Terms of Service of Google Analytics."

Regardless of the fact that the current SCCs (Google Ads and Measurement: Standard Contractual Clauses (Module 3: Processor to Processor) designate Google Ireland as the data exporter, EDREAMS, as the data controller, assumes, along with the other conditions of contracting the services of Google LLC, the agreements related to data processing and the SCCs that allow the data to be transferred to Google LLC, based in the United States.

Specifically, in the contract, in its version of September 27, 2021, it is understood that it agrees with point 10 of the "Data Processing Terms of Google Ads," whereby the data controller has agreed that Google may store and process personal data of the client (i.e., personal data of the claiming party and any user visiting the website in question) in any country where Google or any of its "sub-processors" maintain facilities, including the U.S., as stated by Google LLC itself in the document dated April 9, 2021. Thus, the actions of Google LLC are confined to what is stipulated and, on behalf of EDREAMS, carrying out the processing of the personal data necessary for the proper provision of the service.

For all the above reasons, this allegation is dismissed.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

76/92

11.- NINTH. - Subsidiarily to allegations six, seven, and eight, Google as the data controller and not merely as the data processor.

According to EDREAMS, Google's ability to identify a user with information it already possesses (either through the Google user account or other services used by the user) is entirely unrelated to EDREAMS (which, moreover, does not even have Google Signals activated) and would fall outside the data processing agreement between EDREAMS and Google Ireland.

In response to this allegation, we share what EDREAMS has expressed regarding the transmission of personal data from its website occurring even when the user is not logged into a Google account, as evidenced in the document on file (page 4764) dated 4/03/202, where it can be verified that, even without being logged in, personal data was still sent. However, it cannot be said that EDREAMS ceases to be responsible for this processing by its processor. EDREAMS believes that Google would be responsible for this data and that it would be outside the data processing agreement. However, as previously justified in the response to EDREAMS' Sixth Allegation, the collection of such data and its use to distinguish users can be consulted in the description of how Google Analytics operates, which can be found at the URLs ***URL.49 and ***URL.50, therefore EDREAMS, as the data controller, must assume the processing carried out by its processor.

For all the above reasons, this allegation is dismissed.

12.- TENTH. - Lack of culpability of EDREAMS and cooperative attitude.

According to EDREAMS, it was not reasonable or foreseeable for EDREAMS that its conduct would be unlawful or constitute infringements regarding data protection.

In response to this allegation, both the jurisprudence of the CJEU regarding international data transfers to the U.S., as well as subsequent decisions adopted by other data protection authorities in the European Union, at least from the authorities of Austria, France, and Italy, regarding the illegality of the use of Google Analytics, allowed EDREAMS to have objective elements to know that the provision of the Google Analytics service constituted an infringement of the GDPR that, far from correcting the effects of its actions, has maintained them over time.

For all the above reasons, this allegation is dismissed.

13.- ELEVENTH. - Lack of proportionality in the sanction and unlawful effects. Nullity of the sanction due to impossible content.

According to EDREAMS, the sanction is unlawful and disproportionate to the extent that, subsequently, the conduct attributed to it has ceased to be unlawful, so the proposed sanction would imply a prohibition on future processing that is indeed lawful.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

77/92

Furthermore, the resolution proposal contains an impossible content in that it would be obliging EDREAMS to impose and modulate a service that is not its own but that of a third party, and therefore does not fall under its sphere of control.

In response to this allegation, one cannot speak of a lack of proportionality of the sanction when, according to the circumstances present in this case, no type of economic sanction is imposed for the violation of Article 44 of the GDPR. This Agency merely exercises the corrective power of Article 58.2.j) of the GDPR to ensure compliance with the legality provided for in the GDPR, as well as the new framework established in the Commission's implementing decision dated July 10, 2023, in accordance with Regulation (EU) 2016/679 of the European Parliament and of the Council on the adequate level of protection of personal data in the "EU-U.S. Privacy Shield."

EDREAMS seeks the automatic application of this Decision. However, as argued in the response to its seventh allegation, the application of the "EU-U.S. Privacy Shield" requires that U.S. companies comply with its provisions, among other requirements, they must certify their adherence to the Principles of the Privacy Shield to the U.S. Department of Commerce. Thus, the effective application of the Adequacy Decision to a specific company is conditioned upon its inclusion in the "Privacy Shield List," stating that (unofficial translation): "The benefits of the EU-U.S. Privacy Shield are assured from the date the Department places the organization on the Privacy Shield List."

For all the above reasons, this allegation is dismissed.

14.- TWELFTH. - Subsidiarily to all the previous allegations, the suspension of the procedure is appropriate.

EDREAMS requests the suspension of the procedure based on the provisions of Article 22.1.b) of Law 39/2015 due to the existence of an already approved and valid Adequacy Decision within the EU.

This request for suspension has already been addressed in the resolution proposal, without any changes in the circumstances that led to its rejection. This is a case of discretionary suspension ("may be suspended"), which is not applicable in the face of the infringement of Union law that occurs through the international transfer of data subject to the complaint.

EDREAMS reiterates the argument that "the interested supervisory authorities have not had the opportunity to express their views on the new U.S. regulations in relation to this procedure." Although the decisions made by other authorities in similar cases to the present one are prior to the Commission's adoption of the draft adequacy decision (December 13, 2022), the consultation of the draft decision binding on the authorities in the present procedure was indeed carried out after the new U.S. data protection regulations, with none of the authorities making any comments or objections regarding this new legal framework in relation to the draft decision that, after such consultation, was

adopted by this Agency.

Regarding the responsibility for the international transfer of data, as has been repeatedly explained, although the current contractual configuration attributes to Google Ireland the status of exporter, when initially it was attributed to the data controller in the various versions of the "Google Ads Data Processing Terms" and in the SCCs described in the response to the fourth allegation that EDREAMS made to the initiation agreement, what has not changed in those contractual clauses is the destination of the international data transfer, which is Google LLC, based in the United States.

For all the above reasons, this allegation is dismissed.

IV

Transfers of personal data to third countries

Article 44 "Transfers of personal data to third countries or international organizations" of the GDPR states:

"Personal data that are subject to processing or are to be processed after their transfer to a third country or international organization may only be transferred if, subject to the other provisions of this Regulation, the controller and the processor comply with the conditions laid down in this chapter, including those relating to further transfers of personal data from the third country or international organization to another third country or another international organization. All provisions of this chapter shall apply in order to ensure that the level of protection of natural persons guaranteed by this Regulation is not undermined."

Chapter V of the Regulation provides various instruments to ensure a level of protection substantially equivalent to that guaranteed in the European Union, in accordance with Article 44 of the Regulation:

- adequacy decisions (Article 45);
- appropriate safeguards (Article 46);

In the absence of an equivalent level of protection, it establishes exceptions for specific situations (Article 49).

1.

On the processing of data and the responsibility for processing

In response to the request for information made by this Agency, in a response sent on 10/12/2020, EDREAMS states that it integrated the Google Analytics function on the website with the "purpose of measuring and improving the performance of our website and detecting possible issues and improvements." Furthermore, when mediating...

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

79/92

prior consent is used to connect data with other services, essentially for advertising and marketing purposes. EDREAMS stated that Google Analytics allowed, in particular, the processing of browsing data and customer behavior on its websites, which are pseudonymized through a cookie identifier ("Cookie ID") that enables them to analyze how the user accesses and interacts with their website through their device, and an internal identifier to analyze results at a statistical level in the terms described below:

"The 'Booking ID' - internal booking identifier - is used to identify the sales conversion rate. Likewise, the 'Checked booking ID' allows us to know how many people have entered the 'Manage my booking' section and have selected to cancel or modify it.

The 'Session, Session or eDOuser ID' allow us to limit the amount of data we have in Google Analytics to the maximum and we use it to resolve technical issues. If we detect that something is not functioning well on our website, we need to understand why and where the error is occurring to resolve it (determine which searches have failed, through which browser or device the search was made, at what moment the error occurred, etc.)."

On the other hand, in the document sent by Google LLC to the Austrian authority dated April 9, 2021, which it shared with the other authorities within the framework of the working group for the 101 complaints of NOYB, it is indicated that Google Analytics works by including a block of Javascript code

on the pages of a website. When a user visits a webpage, this Javascript code references a Javascript code that has been previously downloaded to the user's device, which then executes the 'tracking' operation for Google Analytics. The 'tracking' operation sends data about the requested page through various means and sends this information to the Analytics server via a series of parameters attached to a request for a single pixel GIF image sent to the domain google-analytics.com. The data is then processed more extensively and ends up in the reports of the website owner. The data that Google Analytics collects for the benefit of the website owner comes from the following sources:

i.

The user's HTTP request.

An HTTP request contains details such as the browser and the computer making the request, such as the hostname, browser type, 'referrer', and language.

ii.

Browser and system information.

iii.

First-party cookies.

Website administrators who integrate the Google Analytics service can send instructions to Google for processing the data collected through Google Analytics. The website administrator can apply different settings, for example, regarding the data retention period. The Google Analytics function also allows website administrators to monitor and maintain the stability of their website, for example, keeping them informed of certain events such as a spike in audience or the fact that there is no traffic at all. Google Analytics also allows website administrators to monitor and maintain the stability of their website.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

80/92

Web to measure and optimize the effectiveness of advertising campaigns carried out using other Google tools.

Therefore, Google Analytics collects the user's HTTP request and information about the user's browser and operating system, among other things. An HTTP request, for any page, contains details of the browser and device making the request, such as the domain name and browser information, including its type, referrer, and language. Google Analytics stores and reads cookies in the user's browser to evaluate the user's session and other information about the request.

Regarding these data transfers, the contract related to the Google Analytics function ("Google Analytics Terms of Service") includes an appendix titled "Google Ads Data Processing Terms" (previously named "Google Ads Data Processing Terms"). This appendix contains standard contractual clauses governing the transfer of personal data to the United States of America under the Google Analytics service.

EDREAMS indicated that there is nothing in the legislation of the third country that prevents compliance with the standard contractual clauses. Google has implemented additional legal, organizational, and technical measures to regulate data transfers under the Google Analytics service. In accordance with point 10 of the "Google Ads Data Processing Terms," the data controller has agreed that Google may store and process personal data of the customer (i.e., personal data of the claimant and all users visiting the relevant website) in any country where Google or any of its data subprocessors maintain facilities. When this information is collected, it is transmitted to the Google Analytics servers.

Returning to the document sent by Google LLC dated April 9, 2021, in the last paragraph of the response to question 8, Google states that all data collected through Google Analytics is hosted in the United States. Therefore, the data collected on the website "***URL.15" through Google Analytics is transferred to the United States. Such data transmission requires a legal basis in accordance with Article 44 and following of the GDPR.

All these elements show that, when deciding to implement the Google Analytics function on this website for evaluation and optimization purposes, EDREAMS, which manages the website

“***URL.15,” determined the means and purposes of the collection and processing of the data obtained as a result of the integration of Google Analytics into its website and must be considered the data controller in the sense of Article 4.7 of the GDPR.

2.

On the qualification of the data subject to processing as personal data

It can be asserted that the data collected under the Google Analytics function and transferred to the United States of America constitutes personal data.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

81/92

Article 4.1 of the GDPR defines personal data as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific factors related to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person." It should be noted that online identifiers, such as IP addresses or information stored in cookies, can commonly be used to identify a user, especially when combined with other types of similar information. This is illustrated in Recital 30 of the GDPR, which states that the assignment of online identifiers such as IP addresses or cookie identifiers to natural persons or their devices can "leave traces which, in particular when combined with unique identifiers and other information received by servers, can be used to create profiles of natural persons and identify them." In the particular case where the data controller claims not to have the ability to identify the user through the use (alone or in combination with other data points) of such identifiers, it would be expected to disclose the specific means deployed to ensure the anonymity of the collected identifiers. Without such details, they cannot be considered anonymous.

Therefore, it is necessary to examine to what extent the implementation of Google Analytics on a website allows the website administrator and Google to identify a data subject (a visitor to the website in question).

When the claimant (and, in general, the users who visited the website) visited the website ***URL.15, the following data (...) was transmitted from the claimant's browser (and the other users who visited the website) to the servers of Google LLC:

- unique identifiers that identify the browser/device used to visit the website, as well as a unique identifier that identifies the website operator, namely, the Google Analytics account ID of the website operator;
- address and HTML title of the website and subpage visited by the claimant and all users who visited the website,
- information about the browser, operating system, screen resolution, language settings,
- IP address of the claimant and all users who visited the website.

On December 10, 2020, in response to the information request from this Agency, EDREAMS states that, regarding additional measures, in an email sent between EDREAMS and GOOGLE on September 24, GOOGLE stated that it had implemented, to ensure data protection for Google Analytics, among other additional safeguards, the possibility of anonymizing the IPs of the data subjects.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

82/92

And that if this option is activated, according to GOOGLE, the IPs are deleted immediately after collection and are never stored on disk (***URL.51). And that this measure was implemented by

EDREAMS.

It should be noted that the CJEU has already stated that IP addresses are indeed personal data (see case C-597-19, paragraph 102 and C-582/14, paragraph 49). The IP address does not lose its nature as personal data simply because the means of identification reside with third parties. Furthermore, the case in question is very different, as the IP address can be combined with other elements, as will be described below.

Regarding unique identifiers, when the claimant visited the website ***URL.15 (and the other users who visited the website in question), the following user identification numbers were established in the cookies “__gads”, “_ga” and “_gid” and subsequently transmitted to Google LLC:

Domain

Name

Value

Purpose

***DOMINIO.1

_ga

GA1.2.1278272808.1597222441

Google Analytics

***DOMINIO.2

_gid

GA1.2.2049998240.1597416019

Google Analytics

***DOMINIO.3

_gads

ID=d84c528963f6a0b4:T=1597222445:S=ALNI_MYPTckfhOEoLFW

H

Um9XKJahoTTumA

Google Advertising

***DOMINIO.4

_gid

2049998240.1597416019

Google Analytics

***DOMINIO.5

cid

1278272808.1597222441

Google Analytics

Additionally, in the actions carried out by this Agency on February 17, 2021, as recorded in the

Preliminary Actions Report, it was verified that data regarding travel searches made by the visitor of the EDREAMS website were also sent.

On March 24 and 25, 2022, as noted on page 53 of the Preliminary Actions Report, it is confirmed that, in the description of Google Analytics available at the URLs:

“***URL.51”

and “***URL.52”,

the cookies _ga and _gid are used to distinguish users and that the parameter “sr” refers to screen resolution.

Visitor identifiers are unique identifiers intended to differentiate individuals (where that differentiation was not possible before), and make individuals identifiable. These identifiers can also be combined with

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

83/92

other information, such as the address of the visited website, metadata related to the browser and

operating system, the time and data related to the visit to the website, and the IP address. This combination of information further differentiates individuals. For this reason, when several elements are combined, they can allow for the individual identification of visitors to the webpage of "****URL.15," where Google Analytics is implemented. It is not necessary to know the name or the (physical) address of the visitor, as, according to Recital 26 of the GDPR, such qualification of individuals is sufficient for the visitor to be identifiable.

If the opposite were decided, the scope of the right to data protection, guaranteed by Article 8 of the Charter of Fundamental Rights of the European Union, would be undermined, as it would allow companies to specifically select individuals along with personal information (for example, when visiting a specific website) while simultaneously denying them any right to protection against such singling out. Such a restrictive opinion that would undermine the level of protection for individuals is also not in line with the jurisprudence of the Court of Justice of the European Union (hereinafter, CJEU), which has repeatedly ruled that the scope of the GDPR must be understood very broadly (see, for example, judgment C-439/19, paragraph 61).

Google LLC claims that it has "no intention" of using online identifiers to identify the claimant (or other individuals) and that it in fact "does not do this," it should be noted that Article 4(1) of the GDPR does not require an entity to have a specific intention to identify a person. According to the clear wording of Article 4(1) of the GDPR, the term "personal data" is fulfilled when an entity can (has the possibility to) do so.

A more restrictive interpretation of Article 4(1) of the GDPR would be contrary to the jurisprudence of the CJEU; therefore, the definition of "personal data" is applicable to the exposed data. In this case, the claimant had logged into their Google account at the time the website www.edreams.es was visited. As can be seen in Google LLC's statement of April 9, 2021, the implementation of Google Analytics on a website allows Google to receive information from a specific user who has visited that website.

In the context of using Google Analytics, and depending on some settings in the Google account configuration, Google is informed that a user connected to a Google account has visited a particular website. Therefore, personal data related to this account is collected.

Consequently, it must be considered that the data in question are personal data within the meaning of Article 4.1 of the GDPR.

1.

On the non-compliance with regulations regarding the transfer of personal data outside the European Union

In this case, it must be verified whether the export of personal data to the United States of America occurred as the claimant indicates, in the terms that

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

84/92

establishes Article 44 of the GDPR, and, in the event that it has occurred, whether the export was carried out with an adequate level of protection in accordance with a decision of adequacy under Article 45 of the GDPR, or, failing that, whether any of the safeguards under Article 46 of the GDPR were adopted.

a.

Decisions of adequacy

In its judgment in case C-311/18 ("Schrems II"), dated July 16, 2020, the CJEU invalidated the Commission's Implementing Decision (EU) 2016/1250 of July 12, 2016, pursuant to Directive 95/46/EC of the European Parliament and of the Council, regarding the adequacy of the protection provided by the "EU-US Privacy Shield," without maintaining its effects.

In the absence of an applicable adequacy decision in the present case, the data transfer in question cannot be based on the provisions of Article 45.3 of the GDPR.

b.

Appropriate safeguards: Standard data protection clauses

Article 46, "Transfers subject to appropriate safeguards," of the GDPR, establishes in its paragraph 1 that "In the absence of a decision under Article 45(3), the controller or processor may only transfer personal data to a third country or international organization if it has provided appropriate safeguards and on condition that data subjects have enforceable rights and effective legal remedies."

Article 46, paragraph 2, of the GDPR provides that "The appropriate safeguards referred to in paragraph 1 may be provided, without requiring any express authorization from a supervisory authority, by:

(...)

c) standard data protection clauses adopted by the Commission in accordance with the examination procedure referred to in Article 93(2).

(...)."

In the present case, EDREAMS and Google LLC have signed standard contractual clauses for the transfer of personal data to the United States, updated on August 12, 2020, titled "Google Ads Data Processing Terms: Model Contract Clauses, Standard Contractual Clauses for Processors," which could be translated as: "Google Ads Data Processing Terms: Model of Contractual Clauses, Standard Contractual Clauses for Processors" (SCC). These clauses comply with those published by the European Commission in Decision 2010/87/EU.

In this context, it is noteworthy that standard contractual clauses are a transfer instrument in the sense of Chapter V of the Regulation and were not challenged as such by the CJEU in its judgment of July 16, 2020 (C-311/18). However, the CJEU considered that the contractual nature of these clauses implied that they could not be binding on the authorities of third countries. In particular, the CJEU stated that: "...Therefore, while there are situations in which, depending on the legislation and practices in the third country of...

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

85/92

In cases where the recipient of such transfer is able to guarantee the necessary protection of the data solely on the basis of standard contractual clauses for data protection, there are other situations in which the content of such standard clauses may not constitute a sufficient means to effectively guarantee the protection of personal data transferred to the third country in question. This is particularly the case when the legislation of that third country allows its public authorities to interfere with the rights of the data subjects to whom the data refers" (C-311/18, paragraph 126, underlined). However, no further analysis of the legal situation in the United States is necessary, as the CJEU has already provided it in its aforementioned judgment. Indeed, the CJEU considered that regulatory surveillance programs such as Section 702 of FISA and E.O. 12333 in conjunction with PPD-28 do not meet the minimum requirements established by Union law regarding the principle of proportionality, so that surveillance programs based on these provisions cannot be considered limited to what is strictly necessary (C-311/18, paragraph 184). Furthermore, the CJEU found that the legal framework in question did not confer on the data subjects rights that are actionable before the courts against U.S. authorities, from which it follows that these individuals do not have the right to effective judicial protection (C-311/18, paragraph 192).

The CJEU's analysis is relevant in the present matter, as Google LLC (as the importer of the data to the U.S.) must be classified as a provider of electronic communications services within the meaning of paragraph (b) of point 4 of Section 1881 of Title 50 of the United States Code and, therefore, is subject to surveillance by U.S. intelligence services in accordance with paragraph (a) of Section 1881 of Title 50 of the United States Code ("FISA 702"). Therefore, Google LLC is obligated to provide personal data to the U.S. government when requested in accordance with paragraph (a) of Section 1881 of Title 50 of the United States Code (FISA 702).

As can be seen in Google's Transparency Report, Google LLC is regularly subject to such access requests from U.S. intelligence services. The report can be accessed at:

<https://transparencyreport.google.com/user-data/us-national-security?hl=en>

The CJEU stated, on the one hand, that the EU-U.S. adequacy decision was invalid due to the access possibilities of U.S. intelligence services and, on the other, that the conclusion that the use of standard contractual clauses cannot, on its own, guarantee a level of protection, as required by Article 44 of the GDPR, since the guarantees they offer are unmet when such access requests are made. In fact, the CJEU concluded the following:

"It follows that the standard data protection clauses adopted by the Commission on the basis of Article 46(2)(c) of the GDPR are intended solely to provide contractual guarantees that apply uniformly in all third countries to controllers and processors established in the European Union and, consequently, regardless of the level of protection guaranteed in each third country. To the extent that these standard data protection clauses cannot, by their very nature, offer..."

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

86/92

guarantees beyond a contractual obligation to ensure compliance with the level of protection required by Union law may require, depending on the prevailing situation in a specific third country, the adoption of complementary measures by the data controller to ensure compliance with that level of protection" (C-311/18, paragraph 133).

i.

General observations on complementary measures

In its Recommendations 01/2020, dated June 18, 2021 (which can be consulted on the website

***URL.83, although the transcripts included in this document refer to its translation into Spanish), the European Data Protection Board (EDPB) clarified that when the assessment of the legislation or current practices of the third country may affect the effectiveness of the adequate safeguards of the transfer instruments on which the exporter relies, in the context of its specific transfer, as is the case here following the assessment by the CJEU, the exporter must suspend the transfer or implement appropriate complementary measures. The EDPB notes in this regard that "Any complementary measure can only be considered effective in the sense of the CJEU ruling 'Schrems II' to the extent that it addresses the specific deficiencies identified in its assessment of the legal situation in the third country. If, ultimately, it cannot ensure a level of protection that is essentially equivalent, it must not transfer personal data." (see Recommendations 01/2020, paragraph 75).

The measures to complement the standard data protection clauses can be classified into three categories: contractual, technical, or organizational (see Recommendations 01/2020, paragraph 74). Regarding contractual measures, the EDPB stated that: "In some situations, these measures may complement and reinforce the guarantees that the transfer instrument and the relevant law of the third country can provide when, taking into account the circumstances of the transfer, they do not meet all the necessary conditions to ensure a level of protection that is essentially equivalent to that guaranteed in the Union. Given the nature of contractual measures, which generally cannot bind the authorities of that third country when they are not part of the contract, these must be combined with other technical and organizational measures to provide the required level of data protection (...)." (see Recommendations 01/2020, paragraph 99).

As for organizational measures, the EDPB highlighted that: "... Selecting and applying one or more of these measures will not necessarily and systematically guarantee that your transfer complies with the essential equivalence standard required by Union law. Depending on the specific circumstances of the transfer and the assessment carried out on the law of the third country, organizational measures will be needed to complement contractual or technical measures, in order to ensure a level of protection of personal data that is essentially equivalent to that guaranteed in the Union" (see Recommendations 01/2020, paragraph 128).

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

Regarding technical measures, the EDPB stated that "...These measures will be particularly necessary when the legislation of that country imposes obligations on data importers that are contrary to the guarantees of Article 46 of the GDPR and may, in particular, affect the contractual guarantee of an essentially equivalent level of protection against access by public authorities of that third country to such data" (see Recommendations 01/2020, paragraph 77). It added that "The measures listed below aim to ensure that access by public authorities of third countries to the transferred data does not affect the effectiveness of the appropriate safeguards contained in the transfer instruments of Article 46 of the GDPR. These measures apply even if the access of public authorities is in accordance with the law of the importing country, when such access goes beyond what is necessary and proportionate in a democratic society. These measures aim to prevent the possible breach of access by preventing authorities from identifying data subjects, inferring information about them, individualizing them in another context, or associating the transferred data with other datasets they may hold, which may contain, among other data, online identifiers provided by the devices, applications, tools, and protocols used by the data subjects in other contexts." (see Recommendations 01/2020, paragraph 79).

ii.

Complementary measures implemented by Google LLC

Google LLC, as a contractual partner of EDREAMS and data recipient, adopted contractual, organizational, and technical measures to complement the SCC. In the document dated April 9, 2021, sent to the Austrian data protection authority, which it shared with the other authorities within the framework of Working Group TF101, Google LLC described the measures adopted in detail. Taking into account the considerations of the CJEU and the EDPB, it must now be verified whether the complementary measures adopted by Google LLC are effective, meaning that they address the specific issue of the access possibilities of U.S. intelligence services.

Regarding the "legal and organizational measures" adopted, it should be noted that neither user notification, even if such notification is admissible, nor the publication of a transparency report or a "public policy on the handling of government requests" actually prevents or reduces the access possibilities of U.S. intelligence services. Furthermore, it is unclear how the "careful review of each request" by Google LLC regarding its admissibility is effective as a complementary measure, considering that, according to the CJEU, admissible (legal) requests from U.S. intelligence services do not comply with the requirements of European Data Protection legislation.

With respect to the "technical measures" adopted, it should be noted that neither Google LLC nor EDREAMS has clarified how the described measures, such as the protection of communications between Google services, the protection of data in transit between data centers, the protection of communications between users and websites, or "site security," actually prevent or reduce the...

88/92

possibilities of access by U.S. intelligence services based on the legal framework of the United States. Regarding encryption technologies, as in the case of "data at rest" in data centers, as specifically mentioned by Google LLC as a technical measure, it should be noted that Google LLC, as a data importer, has the obligation to grant access or deliver personal data imported under its control, including the cryptographic keys necessary for the data to be intelligible (see Recommendations 01/2020, point 81). In other words: as long as Google LLC has the ability to access individuals' data in clear text, this technical measure cannot be considered effective in the present case.

As Google LLC states that "to the extent that Google Analytics data for measurement transferred by website owners is personal data, it should be considered pseudonymous," it should be noted that universal unique identifiers (UUIDs) do not fall within the definition of Article 4.5 of the GDPR. While pseudonymization can be a privacy-enhancing technique, unique identifiers have, as previously described, the specific intent of identifying users, not acting as a safeguard. Apart from this, it has also been previously described why the combination of unique identifiers with other elements (such as browser or device data and IP address) and the possibility of linking such information to a Google account in any case allows for an individual to be identified.

To the extent that Google LLC refers to an "optional technical measure" through an IP anonymization

feature, it should be noted, first of all, that this measure is, as its name indicates, optional and not applicable to all transfers. Furthermore, from Google's response, it is not clear whether this anonymization occurs before the transfer or if the full IP address is transmitted to the United States and only shortened after this transfer to the United States. Therefore, from a technical standpoint, there is potential access to the entire full IP address before it is shortened.

Thus, the supplementary measures adopted, as presented by Google, are not effective in that none of them address the specific issues in the present case, meaning that none of them prevent the possibilities of access by U.S. intelligence services nor render such accesses ineffective.

a.

The exceptions provided in Chapter V of the Regulation

Article 49, "Exceptions for specific situations," of the GDPR states:

"1. In the absence of an adequacy decision pursuant to Article 45(3), or of appropriate safeguards pursuant to Article 46, including binding corporate rules, a transfer or a set of transfers of personal data to a third country or international organization may only take place if one of the following conditions is met:

a) the data subject has explicitly consented to the proposed transfer, after having been informed of the possible risks to him or her of such transfers due to the absence of an adequacy decision and appropriate safeguards;

b) the transfer is necessary for the performance of a contract between the data subject and the data controller or for the implementation of pre-contractual measures taken at the request of the data subject;

(...)"

On December 10, 2020, in response to the information request made by this Agency, EDREAMS denies that the international data transfer subject to this procedure is based on any of the exceptions provided in Article 49.1.a of the GDPR.

In accordance with the evidence available at this moment in the resolution of the sanctioning procedure, this Agency considers that:

a) The personal data of the complainant (and of the users who visited the EDREAMS website) were exported to Google LLC, 1600 Amphitheatre Parkway, Mountain View, CA 94043 due to the implementation by EDREAMS of the "Google Analytics" functionality on the website ***URL.15, and for this export

b) the standard data protection clauses signed between EDREAMS and Google LLC do not guarantee a level of protection as required by Article 44 of the GDPR, as

- Google LLC is a provider of electronic communications services within the meaning of subsection (a) of point 4 of Article 1881 of Title 50 of the United States Code and is subject to surveillance by U.S. intelligence services in accordance with subsection (a) of Article 1881 of Title 50 of the United States Code, and

- the supplementary measures adopted by Google LLC in addition to the standard contractual clauses (SCC) do not protect the personal data of the complainant (nor of the other users who visited the EDREAMS website) from access by U.S. intelligence services.

c) no other provision of Chapter V of the GDPR can be considered applicable, and therefore

d) with this export, EDREAMS violated the level of protection of the personal data of the complainant (and of the other users who visited the EDREAMS website), guaranteed in accordance with Article 44 of the GDPR.

Therefore, it must be concluded that EDREAMS cannot invoke any of the tools provided in Chapter V of the GDPR to justify the transfer of

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

90/92

personal data of visitors to its website, particularly unique identifiers, IP addresses, browser data, and metadata, to Google LLC in the United States.

Consequently, in accordance with the evidence available in this sanctioning procedure resolution, it is considered that the known facts constitute an infringement attributable to EDREAMS for violation of Article 44, "General principle for transfers," of the GDPR, which states that personal data transfers that are subject to processing or will be processed after their transfer to a third country or international organization will only be carried out if, subject to the other provisions of the GDPR, the controller and the processor comply with the conditions established in this chapter, including those related to further transfers of personal data from the third country or international organization to another third country or another international organization.

V

Classification and qualification of the infringement of Article 44 of the GDPR

The aforementioned infringement of Article 44 of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

(...)

c) the transfers of personal data to a recipient in a third country or an international organization pursuant to Articles 44 to 49;

(...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements," establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations:

(...)

l) The international transfer of personal data to a recipient located in a third country or to an international organization when the guarantees, requirements, or exceptions established in Articles 44 to 49 of Regulation (EU) 2016/679 are not met. (...)"

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

91/92

VI

Corrective powers

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.j) of Article 58, "Powers," the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

j) to order the suspension of data flows to a recipient located in a third country or to an international organization.

(...)."

Therefore, in accordance with the evidence available at this moment in the sanctioning procedure resolution, it is considered appropriate to order EDREAMS to, within one month, provide evidence to this Agency of the following:

- adapt the data processing activity of the Google Analytics service to the provisions of Articles 44 and following of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, particularly by ceasing the international transfer of data until it is demonstrated that the Google

Analytics service complies with the aforementioned provisions of the Regulation.

It is warned that failure to comply with the requirements of this body could be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct could lead to the initiation of a further administrative sanctioning procedure.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER VACACIONES EDREAMS, S.L., with NIF B61965778, for an infringement of Article 44 of the GDPR, classified in Article 83.5 of the GDPR, to provide evidence to this Agency within ONE MONTH of the following:

- adapt the data processing activity of the Google Analytics service to the provisions of Articles 44 and following of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, particularly by ceasing the international transfer of data until it is demonstrated that the Google Analytics service complies with the aforementioned provisions of the Regulation.

SECOND: NOTIFY this resolution to VACACIONES EDREAMS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es

92/92

In accordance with the provisions of Article 60.7 of the GDPR, this resolution will be communicated, once it is final, to the interested supervisory authorities and to the European Data Protection Committee.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-120722

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan 6

www.aepd.es

28001 - Madrid

sedeagpd.gob.es